

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS — FORT WORTH DIVISION
Copeland v. Weinstein Management Co., Inc., et al.

EXHIBIT

21B

**April 23, 2026 Motion for Sanctions filed by
Defendants**

Legal Element Supported:

Second Formal Corporate Ratification; § 3617 retaliation against protected activity

Verified Complaint Reference:

¶¶ 81, 92

[SOURCE DOCUMENT TO BE SUPPLIED BY PLAINTIFF BEFORE FILING]

141-370402-25

FILED
TARRANT COUNTY
4/23/2026 2:41 PM
THOMAS A. WILDER
DISTRICT CLERK

CAUSE NO. 141-370402-25

WEINSTEIN MANAGEMENT CO.,	§	IN THE DISTRICT COURT OF
INC. AND WMCi DALLAS X, LLC,	§	
	§	
Plaintiffs,	§	
	§	
v.	§	
	§	TARRANT COUNTY, TEXAS
KATHRYN COPELAND,	§	
	§	
Defendant.	§	141st JUDICIAL DISTRICT

**WEINSTEIN'S MOTION FOR SANCTIONS FOR FAILURE TO COMPLY WITH
COURT ORDER ON WEINSTEIN'S MOTION TO COMPEL DISCOVERY
RESPONSES/ANSWERS AND COPELAND'S DEPOSITION**

TO THE HONORABLE JUDGE OF SAID COURT:

COME NOW, Weinstein Management Co., Inc. and WMCi Dallas X, LLC (hereinafter "Plaintiffs/Counter-Defendants") and makes and files this, Motion for Sanctions for Failure to Comply with Court Order on Weinstein's Motion to Compel Discovery Responses/Answers and Copeland's Deposition, and in support thereof would respectfully show unto the Court as follows:

I.

PROCEDURAL BACKGROUND

On March 26, 2026, the Court heard Weinstein's Motion to Compel (as to responses/answers to discovery, inclusive of Disclosure Responses, Answers to Interrogatories, and Responses to Requests for Production, and for date for Copeland's deposition). Copeland appeared, via Zoom. The Court granted Weinstein's Motion (in its entirety), and subsequently signed and entered an Order on Weinstein's Motion to Compel Discovery Responses/Answers and Copeland's Deposition (however, no order was issued as to the deposition). This Order, laid out below, was very detailed as to exactly what needed to be supplemented/amended by Copeland,

and provided two weeks from the signing of the Order, for Copeland to fully comply. The Order, signed on April 2, 2026 (attached as **Exhibit “A”** and incorporated herein as if set forth at length) required the following from Copeland by April 16, 2026:

As to Disclosure Responses:

- **Pursuant to TRCP 194.2(b)(5):** Complete identification of all persons with knowledge of relevant facts, to include:
 - All medical and mental healthcare providers;
 - Physicians/medical professionals referenced by Copeland in the “reproductive harm” claim;
 - Copeland’s occupational therapists, physical therapists, speech therapists, and vision therapist, and in- home healthcare providers referenced in Copeland’s pleadings;
 - Physicians/medical professionals involved in any diagnosis and/or treatment of Copeland’s claimed disabilities, including but not limited to: Hypermobility Ehlers-Danlos Syndrome (EDS); Mast Cell Activation Syndrome (MCAS); Median Arcuate Ligament Syndrome (MALS); Postural Orthostatic Tachycardia Syndrome (POTS); Vestibular Schwannoma (a brain tumor); Long COVID; cognitive dysfunction; celiac disease; Hashimoto’s Hypothyroidism; “brain trauma” and/or brain tumor, gastrointestinal issues/weight loss issues, chronic fatigue; respiratory conditions, dermatological symptoms, hand tremors/weaknesses and balance impairment, chronic migraines, and/or autoimmune instability;
 - Physicians/medical professionals involved in ordering, interpreting and/or diagnosing and providing care to Copeland based upon MRI findings, ultrasounds, blood panels, and genetic and allergen sensitivity testing;
 - Physicians/medical professionals (to include psychologists and therapists) for Copeland’s referenced Post-Traumatic Stress Disorder, and as to any other mental health condition claimed by Copeland; and
 - Physicians/medical providers who have diagnosed and/or treated Copeland for or have indicated delayed affects from mold exposure – to include as related to neurological, respiratory, hepatic, renal, and immunological conditions/harm.
 - Every person – professional and lay persons – involved in any matter involving Copeland’s “children’s displacement”. This includes but is not limited to Copeland’s ex husband and Copeland’s mother, as well as all other persons who have knowledge of your children being “displaced” and/or of the facts surrounding the restrictions placed

upon Copeland in terms of visits/contact, should be identified;

- All individuals who have knowledge of the manner in which the alleged incidents (as alleged in Copeland's counter claims) have impacted Copeland's legal career (ie "derailed" Copeland's "legal career trajectory" – as she has alleged), specifically identifying any persons who would have knowledge of this- the manner in which Copeland's legal career has been impacted as well as those individuals who were involved in the matters that led to Copeland's law license suspension;
- Every person who has been in the apartment- with Copeland's authorization and/or invitation - and who is not a maintenance nor management staff with Weinstein, since June 1, 2025;
- Any professional (person or entity) who has/have indicated Copeland has a disability as that term is used for/by the ADA and/or FHA, if they exist; and
- The gentleman Copeland connected with through Bumble and who allegedly assaulted her on September 10, 2025, believed to be Mark Shakelford.
- David Quiram;
- Identification of each hotel, private residence, and/or rental property where Copeland has stayed in the last 8 months (given her claim that she has had "8 months" of hotel instability).
- **Pursuant to TRCP 194.2(b)(9):** All witness statements, to include all recordings of conversations involving Weinstein, and/or the incidents made the basis of this lawsuit/Copeland's counter claims, and all recordings of and /or with any third parties discussing, in any manner, the incidents made the basis of this lawsuit/Copeland's counter claims, Copeland's allegations and Copeland's alleged injuries and/or damages;
- **Pursuant to TRCP 194.2(b)(4):** Amount and Method of Calculation of each of Copeland's asserted economic damages, to include:
 - Past and future medical expenses;
 - Property loss;
 - Relocation/moving costs;
 - Past rents/future housing costs;
 - Payment of hotel lodging paid by Copeland and/or paid for by Weinstein;
 - Payment of dog boarding costs paid by Copeland and/or paid for by Weinstein; and

- Loss earnings (past and future).
- **Pursuant to TRCP 194.2(b)(10):** Production of all medical records and bills that are reasonably related to the injuries and/or damages asserted (and the Court further ordered that, if medical records and bills were not produced within 14 days, Copeland was ordered to immediately produce a medical authorization permitting the disclosure of such medical records/bills).

As to Weinstein's First Set of Interrogatories

Copeland was ordered to answer the First Set of Interrogatories (as served and worded), without any objections being lodged (having waived same).

As to Weinstein's Second Request for Production

Copeland was ordered to respond to the Second Set of Requests for Production (with no objections, having waived same).

Post-Order Conduct

On April 10, 2026, Copeland requested that Weinstein's counsel "agree" to "extend" the Court's deadline of April 16, 2026. Counsel explained to Copeland that because it was the Court's deadline (not a date by which the parties had reached an agreement to have documents/information provided), Weinstein could not "agree" to extend the Court's deadline. Weinstein's counsel further noted that Weinstein had been waiting for basic discovery responses/answers from Copeland for over five months, and needed these vital materials.

On April 13, 2026, Copeland filed a "Verified Motion for Extension of Deadlines, Clarification of Court Directives, and Related Relief". However, Copeland failed to request a hearing for same (either an in-person hearing or hearing by submission). Copeland contends in same that the very detailed and explicit Order regarding the Motion to Compel was (in some unspecified manner) confusing to her, and that she required "clarification" of same (again, despite the level of detail in the Order and despite the lack of specification as to what required

clarification), and instead, later that same day, filed a “Verified Motion to Recuse”. Copeland averred, under penalty of perjury, that even though she had just filed a request for extension of deadlines, that the Motion to Recuse was not made for the purpose of delay. The Motion to Recuse was subsequently denied.

On April 16, 2026, Copeland’s supplemented/amended discovery responses/answers were due to Weinstein. Copeland wholly failed to provide any discovery responses/answers, and failed to secure a hearing on her “Motion for Extension” – either before filing her Motion to Recuse, or since the Motion to Recuse was denied. Accordingly, these responses/answers are still due to Weinstein, from Copeland. Copeland has yet to comply with the Court’s Order – now 7 days past the required deadline. Copeland is in violation of the Court’s Orders by failing to comply with same.

II.

APPLICABLE LAW

Pursuant to Tex. R. Civ. P. 215, a party, upon reasonable notice to other parties and all other persons affected thereby, may apply for sanctions. Tex. R. Civ. P. 215.2(b) specifically provides for sanctions by the Court in which the action is pending, against a party who fails to obey an order of the Court. After notice and hearing, the Court may make such orders in regard to the failure as are just, and among others the following:

- 1) An order disallowing any further discovery of any kind or of a particular kind by the disobedient party;
- 2) An order charging all or any portion of the expenses of discovery or taxable court costs or both against the disobedient party or the attorney advising him;
- 3) An order that the matters regarding which the order was made or any other designated facts shall be taken to be established for the purposes of the action in accordance with the claim of the party obtaining the order;

- 4) An order refusing to allow the disobedient party to support or oppose designated claims or defenses, or prohibiting him from introducing designated matters in evidence;
- 5) An order striking out pleadings or parts thereof, or staying further proceedings until the order is obeyed, or dismissing with or without prejudice the action or proceedings or any part thereof, or rendering a judgment by default against the disobedient party;
- 6) In lieu of any of the foregoing orders or in addition thereto, an order treating as a contempt of court the failure to obey any orders except an order to submit to a physical or mental examination;
- 7) When a party has failed to comply with an order under Rule 204 requiring him to appear or produce another for examination, such orders as are listed in paragraphs (1), (2), (3), (4) or (5) of this subdivision, unless the person failing to comply shows that he is unable to appear or to produce such person for examination.
- 8) In lieu of any of the foregoing orders *or in addition thereto*, the court shall require the party failing to obey the order or the attorney advising him, or both, to pay, at such time as ordered by the court, the reasonable expenses, including attorney fees, caused by the failure, unless the court finds that the failure was substantially justified or that other circumstances make an award of expenses unjust. Such an order shall be subject to review on appeal from the final judgment.

III.

MOTION FOR SANCTIONS

Copeland was ordered by the Court to supplement/amend her Answers to Interrogatories and Responses to Disclosures and Requests for Production by April 16, 2026. Copeland failed/refused to do so, and in failing/refusing to do so, is in violation of the Court's Order.

Copeland filed a "Motion for Extension" claiming that, because she was not allowed to record a Zoom hearing, she "cannot reliably ensure that her responses and filings fully comply with the Court's directives". She further contends in her "Motion" that such pleading was not made for the purposes of delay. It is inexplicable how Copeland could, in "good faith", be confused about what responses/answers she needed to provide in order to be compliant, given that she is a licensed attorney, and given the extremely detailed Order signed by the Court – which lays

out, in detail, what Copeland is required to do. It is further inexplicable that Copeland, in “good faith”, wants to comply with the Order, but refused to produce even a single document or answer a single interrogatory. It is further inexplicable that Copeland failed to secure a ruling on her “Motion” for extension, and instead determined to simply not comply with same, or even make the most basic effort to do so.

Further, Copeland’s failure to obey a previous order of this Court is not an isolated event – Weinstein refers the Court to its Motion for Civil Contempt, due to Copeland’s repeated refusal to abide by the Temporary Restraining Order and Temporary Injunction by continuing to enter her apartment while the Restraining Order/Injunction was in place. Weinstein’s Motion for Civil Contempt is attached as **Exhibit “B”**, and incorporated herein by reference.

Taken together – **Copeland has violated three Court Orders**. Copeland’s utter failure to supplement/amend her discovery responses/answers, filing a Motion for “Clarification” (which appears to be meritless, both on the face of the Motion and based on the level of detail in the Order), Copeland’s failure to set same for hearing (which appears to be yet another delay tactic), and Copeland’s previous conduct in failing to abide by multiple Orders of the Court (Temporary Restraining Order and Temporary Injunction) demands that Copeland be sanctioned, in order to deter further improper conduct, and to prevent further injustice to Weinstein.

Accordingly, Weinstein requests relief under Tex. R. Civ. P. 215, including but not limited to:

- An order refusing to allow the Copeland to support her Counter-Claims and/or Affirmative Defenses, or oppose Weinstein’s causes of action, and preventing Copeland from introducing into evidence any information, documents, or materials which were requested in the discovery requests which Copeland was ordered by this Court to provide, pursuant to Tex. R. Civ. P. 215.2(b)(4).
- An order striking Copeland’s Counter-Claims and Affirmative Defenses, and/or dismissing with prejudice Copeland’s Counter-Claims and Affirmative Defenses, and/or rendering a judgment by default against Copeland, as to Weinstein’s claims and causes of action,

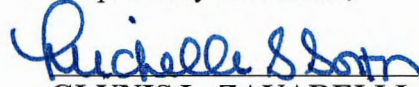
pursuant to Tex. R. Civ. P. 215.2(b)(5).

- In lieu of any of the foregoing orders or in addition thereto, an order treating as a contempt of court the failure to obey the Order on Weinstein's Motion to Compel, pursuant to Tex. R. Civ. P. 215.2(b)(6).
- Copeland to be ordered by the court to pay the reasonable expenses, including attorney fees, caused by her failure to respond/answer discovery and continued failure to abide by the Orders of the Court, pursuant to Tex. R. Civ. P. 215.2(b)(8).
- Further, for Copeland to be ordered by the Court to pay same within two weeks of being ordered to pay same, and that failure to do so will result in an additional finding of contempt by this Court, and, if not already dismissed, with the dismissal with prejudice of Copeland's Counter-claims and striking of Copeland's Affirmative Defenses.

The imposition of the sanctions sought by Weinstein is proper. The pattern of flagrant disregard for this Court's Orders and pattern of discovery abuse that Copeland has committed is ongoing, and at this point, should be deemed intentional. As such, the requested sanctions are appropriate in type and scope, given the pattern of discovery abuse and the refusal/failure to abide by the Orders of this Court.

WHEREFORE PREMISES CONSIDERED, Weinstein pray that Weinstein's Motion for Sanctions be granted, in its entirety, and for such other relief, at law and at equity, to which Weinstein is justly entitled.

Respectfully submitted,



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ATTORNEY FOR WEINSTEIN

PLAINTIFFS/COUNTER

DEFENDANTS

CERTIFICATE OF CONFERENCE

On April 23, 2026, counsel for Weinstein emailed Copeland to conference on the substance of this Motion (in compliance with Copeland's demand for "written only" communications). As of the filing of this Motion, Copeland has not responded. Weinstein therefore presents this matter to the Court, for determination.


MICHELLE S. SORTOR

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing instrument was served on counsel of record this 23rd day of **April, 2026**, in accordance with the Texas Rules of Civil Procedure.

Via Electronic Service

Kathryn Copeland


MICHELLE S. SORTOR

EXHIBIT “A”

141-370402-25

FILED
TARRANT COUNTY
3/26/2026 5:36 PM
THOMAS A. WILDER
DISTRICT CLERK

CAUSE NO. 141-370402-25

**WEINSTEIN MANAGEMENT
COMPANY, INC. AND WMCI
DALLAS X, LLC,**

Plaintiffs,

V.

KATHRYN COPELAND,

Defendant.

www.pearsoned.com

IN THE DISTRICT COURT OF

TARRANT COUNTY, TEXAS

141st JUDICIAL DISTRICT COURT

THOMAS A. WILDER
DISTRICT CLERK
COURT

2026 APR -2 PM 3:35

**ORDER ON WEINSTEIN'S MOTION TO COMPEL DISCOVERY
RESPONSES/ANSWERS AND COPELAND'S DEPOSITION**

On March 26, 2026, came on to be heard Weinstein Management Company, Inc., and WMCI Dallas, X, LLC's (hereinafter, "Weinstein") Motion to Compel Discovery Responses/Answers and Copeland's Deposition. Weinstein appeared by counsel, in person; Copeland appeared pro se, via Zoom. After review and consideration of Weinstein's Motion (and with the Court acknowledging that Weinstein agreed to reschedule the hearing as related to the Motion to Compel concerning Weinstein's First Set of Request for Production and as related to Weinstein's Motion to Compel concerning Copeland's deposition), and after review of the authorities cited therein, and after hearing the arguments of counsel to include pro se Defendant Kathryn Copeland, the Court is of the opinion that the following Order should issue:

IT IS, THEREFORE, ORDERED, ADJUDGED, AND DECREED that Weinstein's Motion to Compel Discovery Responses/Answers with respect to the Rule 194 Disclosures, First Set of Interrogatories and Second Set of Requests for Production is **GRANTED** in its entirety.

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that with respect to the Rule 194 Disclosures, Copeland is ordered to supplement these and serve to counsel for Weinstein, within 14 days of the signing of this Order, the following:

Pursuant to TRCP 194.2(b)(5):

- ❖ Complete identification of all persons with knowledge of relevant facts, to include:
 - All medical and mental healthcare providers;
 - Physicians/medical professionals referenced by Copeland in the “reproductive harm” claim;
 - Copeland’s occupational therapists, physical therapists, speech therapists, and vision therapist, and in-home healthcare providers referenced in Copeland’s pleadings;
 - Physicians/medical professionals involved in any diagnosis and/or treatment of Copeland’s claimed disabilities, including but not limited to: Hypermobility Ehlers-Danlos Syndrome (EDS); Mast Cell Activation Syndrome (MCAS); Median Arcuate Ligament Syndrome (MALS); Postural Orthostatic Tachycardia Syndrome (POTS); Vestibular Schwannoma (a brain tumor); Long COVID; cognitive dysfunction; celiac disease; Hashimoto’s Hypothyroidism; “brain trauma” and/or brain tumor, gastrointestinal issues/weight loss issues, chronic fatigue; respiratory conditions, dermatological symptoms, hand tremors/weaknesses and balance impairment, chronic migraines, and/or autoimmune instability;
 - Physicians/medical professionals involved in ordering, interpreting and/or diagnosing and providing care to Copeland based upon MRI findings, ultrasounds, blood panels, and genetic and allergen sensitivity testing;
 - Physicians/medical professionals (to include psychologists and therapists) for Copeland’s referenced Post-Traumatic Stress Disorder, and as to any other mental health condition claimed by Copeland; and
 - Physicians/medical providers who have diagnosed and/or treated Copeland for or have indicated delayed affects from mold exposure – to include as related to neurological, respiratory, hepatic, renal, and immunological conditions/harm.

- Every person – professional and lay persons – involved in any matter involving Copeland’s “children’s displacement”. This includes but is not limited to Copeland’s ex husband and Copeland’s mother, as well as all other persons who have knowledge of your children being “displaced” and/or of the facts surrounding the restrictions placed upon Copeland in terms of visits/contact, should be identified;
- All individuals who have knowledge of the manner in which the alleged incidents (as alleged in Copeland’s counter claims) have impacted Copeland’s legal career (ie “derailed” Copeland’s “legal career trajectory” – as she has alleged), specifically identifying any persons who would have knowledge of this- the manner in which Copeland’s legal career has been impacted as well as those individuals who were involved in the matters that led to Copeland’s law license suspension;
- Every person who has been in the apartment- with Copeland’s authorization and/or invitation -and who is not a maintenance nor management staff with Weinstein, since June 1, 2025;
- Any professional (person or entity) who has/have indicated Copeland has a disability as that term is used for/by the ADA and/or FHA, if they exist; and
- The gentleman Copeland connected with through Bumble and who allegedly assaulted her on September 10, 2025, believed to be Mark Shakelford.
- David Quiram;
- Identification of each hotel, private residence, and/or rental property where Copeland has stayed in the last 8 months (given her claim that she has had “8 months” of hotel instability).

Pursuant to TRCP 194.2(b)(9):

- All witness statements, to include all recordings of conversations involving Weinstein, and/or the incidents made the basis of this lawsuit/Copeland’s counter claims, and all recordings of and /or with any third parties discussing, in any manner, the incidents made the basis of this lawsuit/Copeland’s counter claims, Copeland’s allegations and Copeland’s alleged injuries and/or damages;

Pursuant to TRCP 194.2(b)(4):

- ❖ Amount and Method of Calculation of each of Copeland’s asserted economic damages, to include:
- Past and future medical expenses;

- Property loss;
- Relocation/moving costs;
- Past rents/future housing costs;
- Payment of hotel lodging paid by Copeland and/or paid for by Weinstein;
- Payment of dog boarding costs paid by Copeland and/or paid for by Weinstein; and
- Loss earnings (past and future).

Pursuant to TRCP 194.2(b)(10):

- ❖ Production of all medical records and bills that are reasonably related to the injuries and/or damages asserted;

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that if responsive medical records and bills are not produced within 14 days, Copeland is then **ORDERED** to immediately produce a medical authorization permitting the disclosure of such medical records and bills.

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that with respect to Weinstein's First Set of Interrogatories, Copeland is **ORDERED** to answer these Interrogatories, as served (and worded) by Weinstein, without objections lodged (all objections have been waived) and to do so fully, within 14 days from the signing of this Order;

:IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that with respect to the Weinstein's Second Set of Requests for Production, Copeland is **ORDERED** to respond to these Requests, with no objections lodged (all objections having been waived) and to produce all responsive documents, and to do so fully, within 14 days from the signing of this Order.

IT IS FURTHER ORDERED, ADJUDGED, AND DECREED that Copeland is required to continue to supplement these written discovery requests, in compliance with the Texas Rules of Civil Procedure.

SIGNED on April, 2026.


PRESIDING JUDGE

EXHIBIT “B”

CAUSE NO. 141-370402-25**WEINSTEIN MANAGEMENT CO.,
INC. AND WMCI DALLAS X, LLC,****Plaintiffs,****v.****KATHRYN COPELAND,****Defendant.**§
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§**IN THE DISTRICT COURT OF****TARRANT COUNTY, TEXAS****141st JUDICIAL DISTRICT**

**MOTION FOR CIVIL CONTEMPT FOR VIOLATION OF
TEMPORARY RESTRAINING ORDER AND TEMPORARY INJUNCTION,
AND MOTION TO SHOW CAUSE**

TO THE HONORABLE JUDGE OF SAID COURT:

COME NOW, Plaintiffs/Counter-Defendants Weinstein Management Co., Inc. and WMCI Dallas X, LLC (hereinafter "Weinstein entities") and makes and files this, their Motion for Civil Contempt for Violation of Temporary Injunction, Motion to Exclude, and Motion to Show Cause, and in support thereof would respectfully show unto the Court as follows:

I.**BRIEF FACTUAL AND PROCEDURAL BACKGROUND**

On October 2, 2025, a properly noticed hearing was held in which Weinstein entities obtained a Temporary Restraining Order against Copeland. This Temporary Restraining Order provided that, in part:

5. Therefore, by this Order, the Court issues this Temporary Restraining Order, GRANTED PLAINTIFFS INJUNCTIVE RELIEF AND RESTRAINING DEFENDANT FROM THE FOLLOWING:

* * * * *

- c. Entering the premises located at 405 Crawford St., Apt. 2145, after a notice has been placed on the front door, in compliance with the applicable rules of the Texas Department of Licensing and Regulation, that mold remediation is being undertaken in the apartment;
- d. Entering the premises located at 405 Crawford St., Apt. 2145, after remediation has been completed and while other necessary repairs (including sheetrock repair, drywall installation, and painting) are taking place;

The Temporary Restraining Order is attached as **Exhibit "A"**, and incorporated herein as if set forth at length.

On October 7, 2025, Plaintiff entered the premises at 405 Crawford St., Apt. 2145, via use of the key fob (which Weinstein entities have not deactivated):

10/07/2025 08:37 PM

Resident Key

(R)-1544 KATHRYN, COPELAND

10/07/2025 08:33 PM

Resident Key

(R)-1544 KATHRYN, COPELAND

The Lock Audit Report is attached herein as **Exhibit "B"**, and incorporated herein as if set forth at length.

On October 16, 2025, a properly noticed hearing was held in which the Weinstein entities obtained a Temporary Injunction against Copeland. The Temporary Injunction provided that (in part):

6. Therefore, by this Order, the Court issues this temporary injunction pursuant to Tex. R. Civ. P. 680, Tex. Civ. Prac. & Rem. Code § 65.001. Defendant is TEMPORARILY ENJOINED AND RESTRAINED FROM:
- a. Returning any item of Defendant's personal property items to Apt. 2145;
 - b. Preventing Plaintiffs, their staff, their representatives and/or agents, and/or their vendors from entering the premises at 405 Crawford St., Apt. 2145;
 - c. Entering the premises located at 405 Crawford St., Apt. 2145, after a notice has been placed on the front door, in compliance with the applicable rules of the Texas Department of Licensing and Regulation, that mold remediation is being undertaken in the apartment;
 - d. Entering the premises located at 405 Crawford St., Apt. 2145, after remediation has been completed and while other necessary repairs (including sheetrock repair, drywall installation, installation of replacement flooring, and painting) are taking place;

The Temporary Injunction is attached as **Exhibit "C"**, and incorporated herein as if set forth at length.

On October 21, 2025, while the Temporary Injunction remained in place, Copeland entered the premises of at 405 Crawford St., Apt. 2145, via use of the key fob (which Weinstein entities have not deactivated):

10/21/2025 08:30 PM	Resident Key	(R)-1544 KATHRYN, COPELAND
10/21/2025 08:09 PM	Resident Key	(R)-1544 KATHRYN, COPELAND

On October 26, 2025, Copeland's lease expired. However, she failed to return her key fob and other access devices, failed to remove her items from the balcony of her apartment, and failed to remove her items from two storage rooms on the premises (and failed to provide Weinstein with an address by which to deliver these items to her, such that Weinstein entities are unable to return these to her [as to the balcony items and one of the storage rooms]).

On December 10, 2025, following a Judgment (rendered on December 9, 2025 for the Weinstein ownership entity, in a lawsuit in a parallel proceeding in Tarrant County Justice of the Peace 3 for "repair and remedy"), Copeland again violated the Temporary Injunction by entering the premises of at 405 Crawford St., Apt. 2145. On December 10, 2025 Copeland not only wrongfully entered the premises, but unlawfully obtained evidence (photographs) to then submit to the Justice of the Peace Court.

On January 6, 2026, at a second trial of the "repair and remedy" matter pending in Justice of the Peace Court Precinct 3 in Tarrant County, Copeland made representations to the Court about the apartment's purported "current" condition. It is unknown specifically what Copeland meant by those comments; while it does not appear that Copeland used her key fob to gain access to the property after December 10, 2025, it is not known if she entered using alternative means to continue to access the unit.

II.
MOTION TO SHOW CAUSE

In lieu of a “Motion for Commitment for a Period of Time of Less than 180 Days”,

Weinstein entities move that Copeland appear at an in-person hearing and show cause:

- As to her repeated access of the premises at 405 Crawford Street, Apartment 2145 since October 2, 2025;
- To confirm to the Court under penalty of perjury that she did not destroy, tamper, change, adjust, modify, alter, interfere with, manipulate, interpose, change, destroy, and/or in any other manner disrupt any element of the apartment unit, remediation efforts, and or repair of the apartment; turn off/on and or operate in any manner any appliance, machinery, and/or equipment, and/or remove any portion of the premises at 405 Crawford Street, Apt. 2145;
- To confirm to the Court under penalty of perjury that, once in Apt. 2145, at any point in time after October 2, 2025, that she did not introduce into and/or adulterate the physical environment and/or the interior air of the apartment, by the addition of foreign and/or organic materials;
- To be ordered to produce to Weinstein within seven days of the show cause hearing a complete and comprehensive list of all tangible, documentary, and or photographic/video evidence created by and/or procured by Copeland while in Apartment Unit 2145 since October 2, 2025;
- To be ordered to produce to Weinstein within seven days of the show cause hearing all tangible or documentary evidence – to include any photographs and/or videos – created, taken, and/or produced by or on behalf of Copeland, in any way, from inside Apartment 2145, and which was developed on or after October 2, 2025, so that same can be identified by Weinstein entities as materials/documents to potentially exclude from evidence in this matter; and
- To show cause to why Copeland’s Counterclaims and/or defenses to Weinstein entities’ causes of action should be maintained despite Copeland’s continuing inability to abide by the terms of the Temporary Restraining Order and Temporary Injunction, and the standards and Rules of this Court.

III. MOTION FOR CIVIL CONTEMPT

Contempt is an inherent power of the courts because it is necessary to insure that courts will be able to enforce their judgments and orders. *Bessette v. W.B. Conkey Co.*, 194 U.S. 324, 333, (1904). A court has inherent power to punish a party who fails to obey a prior order of the court. *Ex parte Barnett*, 600 S.W.2d 252, 254 (Tex. 1980). The power is an essential element of judicial independence and authority. *Id.* The customary procedure by which judgments and orders granting injunctive relief are enforced is by a contempt proceeding. *See* Tex. R. Civ. P. 692. A lack of a verification or sworn affidavit does not deprive the trial court of the power to enforce its judgment through the exercise of contempt power by issuing a show cause order. *Ex parte Winfree*, 153 Tex. 12, 263 S.W.2d 154, 156-58 (Tex. 1953); *see also* Tex. R. Civ. P. 692.

Pursuant to Tex. R.Civ. P. 692:

Disobedience of an injunction may be punished by the court or judge, in term time or in vacation, as a contempt. In case of such disobedience, the complainant, his agent or attorney, may file in the court in which such injunction is pending or with the judge in vacation, his affidavit stating what person is guilty of such disobedience and describing the acts constituting the same; and thereupon the court or judge shall cause to be issued an attachment for such person, directed to the sheriff or any constable of any county, and requiring such officer to arrest the person therein named if found within his county and have him before the court or judge at the time and place named in such writ; or said court or judge may issue a show cause order, directing and requiring such person to appear on such date as may be designated and show cause why he should not be adjudged in contempt of court. On return of such attachment or show cause order, the judge shall proceed to hear proof; and if satisfied that such person has disobeyed the injunction, either directly or indirectly, may commit such person to jail without bail until he purges himself of such contempt, in such manner and form as the court or judge may direct.

Examples of circumstances under which Texas Courts have properly held parties

in contempt include:

- Court assessed a civil penalty in the amount of \$3,100.00 for directly or indirectly operating or causing to be operated any unapproved sewage disposal system located within or about the cabins or the restaurant at a marina, and from causing any public water supply to be attached to the cabins or restaurant at Lakehaven Marina, and an additional \$3,000.00 for contempt. *Grimes v. Brown Cty.*, 2008 Tex. App. LEXIS 2663, at *2 (Tex. App.—Eastland Apr. 10, 2008, no pet.). Such penalties were suspended, providing that additional conditions were met. *Id.*
- Finding of contempt against wife in divorce proceeding, including remedy of permanent injunction, who continued to live on property from which she was enjoined to enter, following interference with attempts to thwart sale of property (finding that wife reiterated her intent to continue living on the properties, and evidence was proffered that wife had placed a lis pendens on property, cut locks and fences, removed sale signs, destroyed property, and erected temporary living structure on property). *Kennedy v. Kennedy*, No. 03-04-00299-CV, 2005 Tex. App. LEXIS 5951, at *13 (Tex. App.—Austin July 28, 2005, pet. denied).
- Neighbor who attempted to adversely possess real property who was permanently enjoined from going on land or interfering in use/possession of land was held in contempt for violation of injunction, and who disregarding injunction prohibiting him from using land to graze cattle was to serve 180 days in jail unless they purged themselves of their contempt by removing their cattle and their family's cattle from the land within seven days. *In re Beeler*, 394 S.W.3d 800, 804 (Tex. App.—Beaumont 2013).

An injunction that is not void must be obeyed while it remains in effect. *Kennedy v. Kennedy*, No. 03-04-00299-CV, 2005 Tex. App. LEXIS 5951, at *13 (Tex. App.—Austin July 28, 2005, pet. denied). There cannot be two sets of procedural rules, one for litigants with counsel and the other for litigants representing themselves. Litigants who represent themselves must comply with the applicable procedural rules, or else they would be given an unfair advantage over litigants represented by counsel. *Mansfield State Bank v. Cohn*, 573 S.W.2d 181, 184-85, 22 Tex. Sup. Ct. J. 43 (Tex. 1978). [A court] may not have a separate standard for a litigant who is not represented by counsel. *Id.*

As an officer of the Court, Copeland's continued disregard for the Orders of the Court and repeated violations of same reflect a more pronounced and shocking contempt for the authority of this Court than a mere pro se litigant who may not understand the seriousness of same.

Weinstein respectfully requests that this Court enter a further Order explicitly stating the following:

- Copeland is admonished and ordered to abide by all applicable provisions of the Temporary Injunction;
- Copeland is ordered to produce to Weinstein within seven days of the show cause hearing a complete and comprehensive list of all tangible, documentary, and or photographic/video evidence created by and/or procured by Copeland while in Apartment Unit 2145 since October 2, 2025; and
- Copeland is ordered to produce to Weinstein within seven days of the show cause hearing any tangible or documentary evidence – to include any photographs and/or videos – created, taken, and/or produced by or on behalf of Copeland, in any way, from inside Apartment 2145, and which was developed on or after October 2, 2025, so that same can be identified by Weinstein entities as materials/documents to potentially exclude from evidence in this matter;

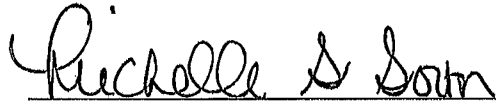
IV.

CONCLUSION

Due to Copeland's continuing violations of the Orders of this Court, to include the Temporary Restraining Order and Temporary Injunction, and due to Copeland's knowing violations of these Orders for the express purpose of obtaining unlawful evidence to be used in the furtherance of meritless and baseless allegations against Weinstein, Weinstein moves that this Court order Copeland to appear and show cause as to why she should not be subject to penalties described herein. Upon finding that Copeland has violated the Temporary Restraining Order and Temporary Injunction, Weinstein seeks that the Court admonish and order Copeland to comply with the terms of Temporary Injunction, and to list and produce all evidence obtained in violation

of the Temporary Restraining Order and Temporary Injunction. Should Copeland further violate the Temporary Injunction, Weinstein will seek further penalties, to include Contempt of Court.

WHEREFORE PREMISES CONSIDERED, Weinstein entities respectfully request that their Motion for Civil Contempt for Violations of the Temporary Restraining Order and Temporary Injunction be Granted, and for such other relief, whether at law or in equity, to which Weinstein entities may be justly entitled.



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WENTZ & ZAVARELLI, L.L.P.

3120 Sabre Drive, Suite 170

Southlake, Texas 76092

Telephone (469) 665-9100

Facsimile (469) 665-9106

ATTORNEY FOR PLAINTIFFS

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing instrument was served on counsel of record this 16th day of January, 2026, in accordance with the Texas Rules of Civil Procedure.

Via Electronic Service

Kathryn Copeland



MICHELLE S. SORTOR

EXHIBIT “A”

141-370402-25

FILED
TARRANT COUNTY

FILED
TARRANT COUNTY
9/19/2025 2:43 PM
THOMAS A. WILDER
DISTRICT CLERK

CAUSE NO. 2025 OCT -2 PM 11:13

WEINSTEIN MANAGEMENT
COMPANY, INC. AND WMCI
DALLAS XC, LLC,

Plaintiffs,

v.

KATHRYN COPELAND,

Defendant.

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IN THE DISTRICT COURT OF
TARRANT COUNTY
DISTRICT CLERK

TARRANT COUNTY, TEXAS

JUDICIAL DISTRICT

TEMPORARY RESTRAINING ORDER

On this day came on to be heard, Plaintiffs', Weinstein Management Company, Inc., and WMCI Dallas XC, LLC, Original Petition, Application for Temporary Restraining Order, and Request for Temporary and Permanent Injunctions, Upon hearing and notice to Defendant, Kathryn Copeland, and after considering Plaintiffs', Weinstein Management Company, Inc., and WMCI Dallas XC, LLC, Original Petition, Application for Temporary Restraining Order, and Request for Temporary and Permanent Injunctions, the Court finds that harm is imminent to Plaintiffs, and if the Court does not issue the Temporary Restraining Order, Plaintiffs will be irreparably injured. Therefore, , the Court is of the opinion that the following order should issue, to restrain and enjoin Defendant from interfering with the repair and remediation of purported mold in her apartment unit, to include refusing to allow Weinstein Properties' staff and/or third-party vendors access to the apartment in order to perform actions necessary to repair, remediate, and safeguard the apartment unit and fixtures within. The Court finds that injunctive relief is necessary to prevent further damage to the apartment unit and/or fixtures within.

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Plaintiffs' request for injunctive relief is hereby **GRANTED**.
2. Plaintiffs have standing to seek injunctive relief to ensure remediation/repair work will be performed without further delay by Defendant, and prevent further damage and safeguard their property.
3. Plaintiffs do not have an adequate remedy at law, as Defendant's continued interruption, delay, and/or interference with vital maintenance, repair, and/or remediation of the property places Plaintiffs in actual danger of damage to their property.
4. Plaintiffs have a probable right to recovery under their breach of contract, declaratory judgment, and/or tortious interference with contract claims.
5. Therefore, by this Order, the Court issues this Temporary Restraining Order, **GRANTED PLAINTIFFS INJUNCTIVE RELIEF AND RESTRAINING DEFENDANT FROM THE FOLLOWING:**
 - a. Interfering with and/or preventing Plaintiffs from moving Defendant's personal property items within the unit, as may be necessary to effectuate repairs, remediation, and/or safeguarding of Plaintiffs' property;
 - b. Preventing Plaintiffs, their staff, their representatives and/or agents, and/or their vendors from entering the premises at 405 Crawford St., Apt. 2145;
 - c. Entering the premises located at 405 Crawford St., Apt. 2145, after a notice has been placed on the front door, in compliance with the applicable rules of the Texas Department of Licensing and Regulation, that mold remediation is being undertaken in the apartment;
 - d. Entering the premises located at 405 Crawford St., Apt. 2145, after remediation has been completed and while other necessary repairs (including sheetrock repair, drywall installation, and painting) are taking place;
 - e. Plaintiff will deliver all items remaining in the apartment and deliver them to Defendant within 3 days.
 - f. Defendant shall provide a list items she needs for medical or sentimental reasons and Plaintiff will deliver those items to Defendant as allowed by law.
 - g. Remediation can resume today.

The Court finds that the issuance of \$1,000.00 in security of a bond is sufficient to protect any interests of Defendant in this matter. The bond shall be affixed with two or more good and sufficient sureties, or shall be made in cash.

The foregoing Order shall remain in effect from the date and time of the entry of this Order until fourteen days after entry or until further agreed by the parties or as otherwise ordered by this Court.

This Court further Orders the Clerk to issue notice to Defendant that the hearing on the Plaintiffs' Application for Temporary Injunction is set for: October 14, 2025, at 10:30 a.m..

The purpose of the hearing will be to determine whether a temporary injunction should be issued upon the same grounds and particulars as specified herein or as requested in Plaintiffs' then-current petition. This hearing will take place in person at the Tom Vandergriff Civil Courts Building located at 100 North Calhoun Street, Fort Worth, TX 76196.

The Clerk shall, forthwith, issue a temporary restraining order in conformity with the law and the terms of this Order.

SIGNED on October 2, 2025, at 10:30 (a.m.) p.m.


DISTRICT COURT JUDGE

From: Jasmin Andrade
To: k.m.copeland@tcu.edu
Cc: [Amanda T. Pfisterer](#)
Subject: 141-370402-25 WEINSTEIN MANAGEMENT CO | v | KATHRYN COPELAND
Date: Thursday, October 2, 2025 11:25:00 AM
Attachments: [14137040225000022.PDF](#)
[Image001.png](#)

Please see the attached signed Temporary Restraining Order.

Thank you,

Jasmin Andrade

Administrative Court Clerk-141st
Tarrant County District Clerk
Tom Vandergriff Civil Courts Building
100 N. Calhoun St, 2nd Floor
Fort Worth, TX 76196
[\(817\)-884-1588](tel:(817)-884-1588)
jandrade@tarrantcountytx.gov





TARRANT COUNTY
THOMAS A. WILDER
DISTRICT CLERK - CIVIL
100 N. CALHOUN ST., 2ND FLOOR
FORT WORTH, TEXAS 76196-0402

141st

KATHRYN COPELAND
405 CRAWFORD ST APT 2145
FORT WORTH TX

EXHIBIT “B”

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~~B~~-Bad Record

(R=Resident; S=Staff; V=Vendor)

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07/24/2025 07:46 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
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07/24/2025 10:31 AM	Limited Use Key	(S)-1488 WALKER, KODI	
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07/11/2025 03:11 PM	Limited Use Key	(S)-1488 WALKER, KODI	
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07/11/2025 09:33 AM	Resident Key	(R)-1544 KATHRYN, COPELAND	
07/11/2025 09:12 AM	Resident Key	(R)-1544 KATHRYN, COPELAND	
07/10/2025 11:50 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
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07/10/2025 05:54 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	

C013841 EAST BORADWAY APT8

11/21/2025 2:21 PM

LOCK AUDIT REPORT

Page 7 of 7

Date/Time	Key Type	Key User ID / Name	Add'l Data
07/10/2025 03:56 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	
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07/09/2025 01:03 PM	Resident Key	(R)-1544 KATHRYN, COPELAND	

EXHIBIT “C”

CAUSE NO. 141-370402-25

WEINSTEIN MANAGEMENT
COMPANY, INC. AND WMCi DALLAS
XC, LLC,

Plaintiffs,

v.

KATHRYN COPELAND,

Defendant.

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IN THE DISTRICT COURT OF

TARRANT COUNTY, TEXAS

141st JUDICIAL DISTRICT

THOMAS A. WILDER
DISTRICT CLERK

2025 OCT 16 PM 2:13

FILED
TARRANT COUNTY

TEMPORARY INJUNCTION

On this day came on to be heard, Plaintiffs', Weinstein Management Company, Inc., and WMCi Dallas XC, LLC, Original Petition, Application for Temporary Restraining Order, and Request for Temporary and Permanent Injunctions, Upon hearing and notice to Defendant, Kathryn Copeland, and after considering Plaintiffs', Weinstein Management Company, Inc., and WMCi Dallas XC, LLC, Original Petition, Application for Temporary Restraining Order, and Request for Temporary and Permanent Injunctions, the Court finds that harm is imminent to Plaintiffs, and if the Court does not issue the Temporary Injunction, Plaintiffs will be irreparably injured.

Therefore, the Court is of the opinion that the following order should issue, to restrain and enjoin Defendant from interfering with the repair and remediation of purported mold in her apartment unit, to include refusing to allow Weinstein Properties' staff and/or third-party vendors access to the apartment in order to perform actions necessary to repair, remediate, and safeguard the apartment unit and fixtures within. The Court finds that injunctive relief is necessary to prevent further damage to the apartment unit and/or fixtures within, and that the harm to Plaintiffs

outweighs any potential harm to Defendant, and the requested injunctive relief is necessary to preserve the status quo pending a final adjudication on the merits..

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Plaintiffs' request for injunctive relief is hereby **GRANTED**.
2. Plaintiffs have standing to seek injunctive relief to ensure remediation/repair work will continue to be performed without further delay by Defendant, and prevent further damage and safeguard their property, without which Plaintiffs will suffer immediate and irreparable injury/damages, for which there is no adequate remedy at law.
3. Plaintiffs do not have an adequate remedy at law, as Defendant's continued interruption, delay, and/or interference with vital maintenance, repair, and/or remediation of the property places Plaintiffs in actual danger of damage to their property.
4. Plaintiffs have a probable right to recovery under their breach of contract, declaratory judgment, and/or tortious interference with contract claims.
5. Plaintiffs' rights and property cannot be fully and adequately preserved without the issuance of this Temporary Injunction.
6. Therefore, by this Order, the Court issues this temporary injunction pursuant to Tex. R. Civ. P. 680, Tex. Civ. Prac. & Rem. Code § 65.001. Defendant is **TEMPORARILY ENJOINED AND RESTRAINED FROM:**
 - a. Returning any item of Defendant's personal property items to Apt. 2145;
 - b. Preventing Plaintiffs, their staff, their representatives and/or agents, and/or their vendors from entering the premises at 405 Crawford St., Apt. 2145;
 - c. Entering the premises located at 405 Crawford St., Apt. 2145, after a notice has been placed on the front door, in compliance with the applicable rules of the Texas Department of Licensing and Regulation, that mold remediation is being undertaken in the apartment;
 - d. Entering the premises located at 405 Crawford St., Apt. 2145, after remediation has been completed and while other necessary repairs (including sheetrock repair, drywall installation, installation of replacement flooring, and painting) are taking place;

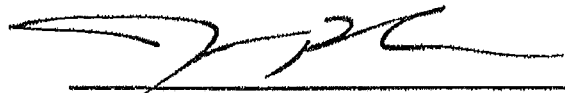
The Court **FURTHER ORDERS** that the current remediation and/or repair ongoing in the Apartment can continue to completion.

At the October 2, 2025 hearing, the Court found that the issuance of \$1,000.00 in security of a bond is sufficient to protect any interests of Defendant in this matter. The bond was to be affixed with two or more good and sufficient sureties, or shall be made in cash. The Court further finds that Plaintiffs have posted a cash bond in the amount of \$1,000.00, and that the previous Bond posted in this matter remains sufficient to protect the interests of Defendant in this matter.

The October 2, 2025 Temporary Restraining Order issued by the Court expires on October 16, 2025. This Temporary Injunction shall remain in effect as of the date and time of the entry of this Order until further order of the Court or the entry of a final judgment in this case.

The Clerk shall, forthwith, issue a Temporary Injunction in conformity with the law and the terms of this Order. *Trial set for May 11, 2026.*

SIGNED on October 14, 2025, at 10:35 (a.m.)/p.m.



DISTRICT COURT JUDGE

From: Jasmin Andrade
To: "k.m.copeland@tcu.edu"; "k.m.copeland@tcu.edu"; "GZAVARELLI@WANDZLAW.COM"; "MSORTOR@WANDZLAW.COM"
Cc: Priscilla M. Castillo
Subject: 141-370402-25 WEINSTEIN MANAGEMENT | v | KATHRYN COPELAND
Date: Thursday, October 16, 2025 2:39:00 PM
Attachments: 141370402252025101637SETTINGORDTRIALWKOF51126.PDF
141370402252025101638TEMPINJ.PDF
image001.png

Please see the attached Signed Setting order & Temporary Injunction Order.

**As ReSearchTX works to refine their noticing process,
the District Clerk's office will send notices until the issues are resolved.

Thank you,

Jasmin Andrade

Administrative Court Clerk-141st
Tarrant County District Clerk
Tom Vandergriff Civil Courts Building
100 N. Calhoun St, 2nd Floor
Fort Worth, TX 76196
(817)-884-1588
landrade@tarrantcountytexas.gov





TARRANT COUNTY
THOMAS A. WILDER
DISTRICT CLERK - CIVIL
100 N. CALHOUN ST., 2ND FLOOR
FORT WORTH, TEXAS 76196-0402

141st

KATHRYN COPELAND
405 CRAWFORD ST APT 2145
FORT WORTH TX

Automated Certificate of eService

This automated certificate of service was created by the eFiling system. The filer served this document via email generated by the eFiling system on the date and to the persons listed below. The rules governing certificates of service have not changed. Filers must still provide a certificate of service that complies with all applicable rules.

Envelope ID: 110142881

Filing Code Description: Motion for Contempt

Filing Description: Motion for Civil Contempt for Violation of Temporary Restraining Order and Temporary Injunction, and Motion to Show Cause
Status as of 1/16/2026 1:07 PM CST

Case Contacts

Name	BarNumber	Email	TimestampSubmitted	Status
Glynis L. Zavarelli		gzavarelli@wandzlaw.com	1/16/2026 11:50:18 AM	SENT
Michelle Sortor		msortor@wandzlaw.com	1/16/2026 11:50:18 AM	SENT
Kathryn Copeland		katie@copelandlawtexas.com	1/16/2026 11:50:18 AM	SENT
Courtney Cotten		ccotten@wandzlaw.com	1/16/2026 11:50:18 AM	SENT
Rebecca Young		ryoung@wandzlaw.com	1/16/2026 11:50:18 AM	SENT
Krystina Hickey		khickey@wandzlaw.com	1/16/2026 11:50:18 AM	SENT
Kathryn Copeland		k.m.copeland@tcu.edu	1/16/2026 11:50:18 AM	SENT
Aayush Dhurka		adhurka@wandzlaw.com	1/16/2026 11:50:18 AM	SENT

Automated Certificate of eService

This automated certificate of service was created by the eFiling system. The filer served this document via email generated by the eFiling system on the date and to the persons listed below. The rules governing certificates of service have not changed. Filers must still provide a certificate of service that complies with all applicable rules.

Envelope ID: 114030761

Filing Code Description: Motion (No Fee)

Filing Description: Weinstein's Motion For Sanctions For Failure to Comply With Court Order On Weinstein's Motion To Compel Discovery

Responses/Answers and Copeland's Deposition

Status as of 4/23/2026 2:59 PM CST

Case Contacts

Name	BarNumber	Email	TimestampSubmitted	Status
Glynis L.Zavarelli		gzavarelli@wandzlaw.com	4/23/2026 2:41:06 PM	SENT
Michelle Sortor		msortor@wandzlaw.com	4/23/2026 2:41:06 PM	SENT
Kathryn Copeland		katie@copelandlawtexas.com	4/23/2026 2:41:06 PM	SENT
Rebecca Young		ryoung@wandzlaw.com	4/23/2026 2:41:06 PM	SENT
Kathryn Copeland		k.m.copeland@tcu.edu	4/23/2026 2:41:06 PM	SENT
Aayush Dhurka		adhurka@wandzlaw.com	4/23/2026 2:41:06 PM	SENT
Courtney Cotten		ccotten@wandzlaw.com	4/23/2026 2:41:06 PM	SENT

CAUSE NO. 2026-001018-2

KATHRYN COPELAND

Plaintiff

v.

WMCI DALLAS X, LLC

Defendant

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IN THE COUNTY COURT

AT LAW NO. 2

TARRANT COUNTY, TEXAS

DEFENDANT'S MOTION FOR SANCTIONS

TO THE HONORABLE JUDGE OF SAID COURT:

COME NOW, Defendant and makes and files this, its Motion for Sanctions, and in support thereof would respectfully show unto the Court as follows:

I.

BACKGROUND

Plaintiff (a former tenant suing to “repair” and “remedy” an apartment in which she no longer lives, from which she was evicted) is both a vexatious litigant and licensed attorney.

On April 9, 2026, counsel for the parties held a conference in which the consolidation of this suit with another pending matter (between the same parties regarding the same subject matter and through which Plaintiff is asserting the same causes of action and damages). Plaintiff’s counsel indicated that he was in agreement with the Motion to Consolidate, after which Defendant filed a revised Certificate of Conference.

Counsel for Defendant appeared for the hearing on the Consolidation of this matter; the Court, having considered Defendant's Motion, the Amended Certificate of Conference, and noting that counsel for Plaintiff had not appeared, orally granted Defendant's Motion and requested the submission of an Order granting the consolidation.

However, upon information and belief, Plaintiff (individually – which is not permitted pursuant to the Vexatious Litigant Order¹) appeared, after the hearing concluded, and once counsel for Defendant was no long present, without counsel, to argue that she had not provided consent for the Motion for Consolidation, and to request that the Court vacate its oral ruling and not sign an Order granting consolidation.

Thereafter, a filing was made on behalf of Plaintiff, which was titled "Plaintiff's Emergency Motion to Reconsider and Vacate Order Granting Consolidation and Request to Hold Entry of Written Order". This stated that the motion was filed on an "emergency" basis, because of relief granted by the Court, to notify the Court that Plaintiff had not consented to same.

Now, Plaintiff (not her attorney) contends that she would suffer "prejudice" because her claim is a "statutory" claim, to be resolved in a streamlined and expedited manner. However, Plaintiff's desire for a "streamlined" and/or "expedited" handling of this matter is wholly contradicted by her actual course of conduct in this matter:

- 1) Defendant was forced to request the enforcements of the requirements of Tex. Civ. Prac. & Rem. Code, as Plaintiff was continuing to file documents signed by her, in violation of the Vexatious Litigant Order;
- 2) Defendant made and noticed a request for a "Status Conference". Plaintiff and her counsel made no attempt to respond to same, and failed to appear for same when the matter was called; and

¹ The Court is referred to Defendant's February 5, 2026 Notice to Clerk of Failure to Provide Prefiling Order to Defendant by Vexatious Litigant and February 16, 2026 Motion To Enforce Requirements of Chapter 11 of the Texas Civil Practice and Remedies Code.

- 3) Plaintiff (not her counsel) now opposes the transfer and consolidation (which would provide the most efficient manner to proceed in this matter).

All of these indicate that there has been no effort to either “expedite” or “streamline” any matter before this Court – instead, continuing to obfuscate, delay, and violate Vexatious Litigant Order (by having Plaintiff appear to represent herself now, on two occasions before this Court, and by Douglas’ failure to appear). Defendant made good-faith efforts to avoid confusing and contradictory claims now before the Court – and an agreement, reached with counsel for Plaintiff, was made in an effort to preserve time and resources – which is now the subject of not one, but two separate hearings.

Plaintiff’s “Emergency Motion” bears Plaintiff’s counsel’s signature, and was e-filed from counsel’s e-file account. The Notification of Service is attached as **Exhibit “A”**; the Motion filed on Plaintiff’s behalf is attached as **Exhibit “B”**. Further, an email represented to be from John Douglas, from his email account (which Copeland has access to) was sent to the Court. The April 9, 2026 email is attached as **Exhibit “C”**. On April 12, 2026, Plaintiff’s Verified Notice of Void Vexatious Litigant Order was filed, via John Douglas’ e-file account, and represented as signed by John Douglas.

On April 9, 2026, and again on April 13, 2026, counsel for Defendant conferred with counsel for Plaintiff. In those conferences, counsel for Plaintiff, John Douglas, confirmed that:

- 1) He did not draft or send, and did not give permission to be drafted or sent, the April 9th email sent from his email address – “john@jadouglaslaw.com”.
- 2) John Douglas did not sign or give permission to sign on his behalf – the April 9th email sent from his email address.
- 3) The April 9th email was sent from an email address – “john@jadouglaslaw.com” – an email account to which Plaintiff has access.
- 4) John Douglas believed that Ms. Copeland had drafted, signed, and sent the April 9th email herself, without his knowledge or permission.

- 5) John Douglas did not draft the Emergency Motion to Reconsider and Vacate Order Granting Consolidation and Request to Hold Entry of Written Order, Order Granting same, the Verified Notice of Void Vexatious Litigant Order, or Order granting same. He did not sign the Emergency Motion to Reconsider and Vacate Order Granting Consolidation, and did not file it. John Douglas stated he believed that Copeland had signed his name without his permission. John Douglas did not authorize the pleadings or the orders to be filed from his e-file account, and did not authorize Ms. Copeland to file these particular pleading from his e-file account.
- 6) John Douglas believed that Ms. Copeland, had drafted, signed, and e-filed the April 9th and April 16th pleadings and orders, without his knowledge or permission.

Counsel for Defendant, Glynis Zavarelli, spoke to John Douglas on both occasions, wherein he stated information to counsel, as relayed above. The first telephone call occurred on April 9, 20026, over speaker phone, in the presence of Michelle Sortor and Courtney Cotten. The second telephone call on April 13, 2026, occurred over speaker phone in the presence of Courtney Cotten and partially in the presence of Michelle Sortor.

Please see attached, the following **Exhibits “D”, “E”, and “F”**:

- Exhibit “D”: Affidavit of Glynis Zavarelli;
- Exhibit “E”: Affidavit of Michelle Sortor; and
- Exhibit “F”: Affidavit of Courtney Cotten.

II.

MOTION FOR SANCTIONS

Defendant seeks monetary sanctions for the cost of having to prepare this Motion, attend a second hearing on the underlying matter, and for the cost of responding to any additional filings made by Douglas/Plaintiff. Evidence regarding the amount of time spent on these matters will be presented at the hearing on the Motion to Consolidate/Transfer.

Further, based on information received from John Douglas, Plaintiff's counsel, Copeland – who is already forbidden by Court Order from representing herself - potentially engaged in a course of conduct which requires further inquiry by this Court:

- 1) Sent an email to the Court staff and counsel appearing as though it was sent by John Douglas, without his authority;
- 2) Filed two documents with the Court on April 9, 2026 in Envelope No. 113447251, using John Douglas' e-file account, when she purportedly had no authority to do so:
 - a. Emergency Motion to Reconsider and Vacate Order Granting Consolidation and Request to Hold Entry of Written Order, at 12:12 p.m., and
 - b. Proposed Order Granting Plaintiff's Emergency Motion to Reconsider and Vacate Consolidation;
- 3) Signed John Douglas' name, via electronic signature and signature block, to the Emergency Motion to Reconsider and Vacate Order Granting Consolidation and Request to Hold Entry of Written Order, when she did not have his authority to sign such an Emergency Motion;
- 4) Contained within the Emergency Motion to Reconsider and Vacate Order Granting Consolidation and Request to Hold Entry of Written Order an "Unsworn Declaration" are demonstrably false representations, made explicitly by Copeland to the Court, as to her address (which is the address of the apartment unit, and at which Copeland has not resided since approximately September 19, 2025) and as to who signed the pleading.

This timeline of events and uncertainty is deeply troubling, and brought to the attention of the Court for hearing and determination. If it is determined by the Court that Copeland improperly and without permission or authority sent email(s) to the Court representing to be John Douglas, filed documents represented to be signed by John Douglas without permission and/or authority, and/or signed documents under penalty of perjury which were false when made, the Defendant requests that the Court impose appropriate sanctions to deter such conduct in the future.

III.

CONCLUSION

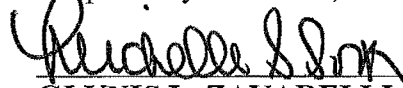
By this filing, Defendant presents this matter to the Court for further inquiry and findings. Defendant prays that the Court will, after considering the evidence presented in same, and after considering the evidence presented during the hearing on same, order a sanction against Plaintiff for Plaintiff's conduct.

Defendant further respectfully requests that this case be transferred to and consolidated with the case pending in the 141st Judicial District Court, styled:

Weinstein Management Co., Inc. and WMCI Dallas X, LLC v. Kathryn Copeland, Cause No. 141-370402-25, in the 141st Judicial District Court, Tarrant County, Texas.

WHEREFORE PREMISES CONSIDERED, Defendant prays that Plaintiff be sanctioned, or, in the alternative, that Defendant's Motion for Transfer/Consolidation be granted, that this case be transferred to and consolidated with the pending 141st Judicial Court, district court case, and for such other relief, at law and at equity, to which Defendant is justly entitled.

Respectfully submitted,



GLYNIS L. ZAVARELLI

State Bar No. 00788743

gzavarelli@wandzlaw.com

MICHELLE S. SORTOR

msortor@wandzlaw.com

State Bar No. 24056336

WENTZ & ZAVARELLI, L.L.P.

3120 Sabre Drive, Suite 170

Southlake, Texas 76092

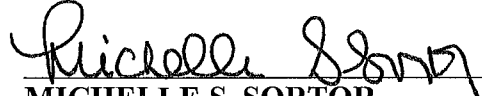
(469) 665-9100 – Telephone

(469) 665-9106 – Facsimile

ATTORNEY FOR DEFENDANT

CERTIFICATE OF CONFERENCE

Counsel for Defendant, Glynis Zavarelli, has conferred with Plaintiff's counsel, John Douglas, on the substance of this Motion, including Defendant's intent to seek sanctions. Plaintiff's counsel is opposed, and as such this Motion is presented to the Court for hearing and determination.


MICHELLE S. SORTOR

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing instrument was served on counsel of record this **13th** day of **April, 2026**, in accordance with the Texas Rules of Civil Procedure.

Via Electronic Service

John Douglas


MICHELLE S. SORTOR

EXHIBIT “A”

Michelle Sortor

From: no-reply@efilingmail.tylertech.cloud
Sent: Thursday, April 9, 2026 12:13 PM
To: Michelle Sortor
Subject: Notification of Service for Case: 2026-001018-2, Kathryn CopelandvsWMCi X, LLC d/b/a The Bowery at Southside for filing Motion (No Fee), Envelope Number: 113447251

Follow Up Flag: Follow up
Flag Status: Completed

Categories: Efile



Notification of Service

Case Number: 2026-001018-2
Case Style: Kathryn CopelandvsWMCi X, LLC
d/b/a The Bowery at Southside
Envelope Number: 113447251

This is a notification of service for the filing listed. Please click the link below to retrieve the submitted document. If the link does not work, please copy the link and paste into your browser. You can also obtain this document by following the steps on this [article](#).

Filing Details

Case Number	2026-001018-2
Case Style	Kathryn CopelandvsWMCi X, LLC d/b/a The Bowery at Southside
Date/Time Submitted	4/9/2026 12:12 PM CST
Filing Type	Motion (No Fee)
Filing Description	PLAINTIFF???S EMERGENCY MOTION TO RECONSIDER AND VACATE ORDER GRANTING CONSOLIDATION AND REQUEST TO HOLD ENTRY OF WRITTEN ORDER
Filed By	John Douglas
Service Contacts	Other Service Contacts not associated with a party on the case: Glynis Zavarelli (gzavarelli@wandzlaw.com) Michelle Sortor (msortor@wandzlaw.com) Courtney Cotten (ccotten@wandzlaw.com) Rebecca Young (ryoung@wandzlaw.com) Aayush Dhurka (adhurka@wandzlaw.com)

Kathryn Copeland (kcopelandlaw@gmail.com)

John Douglas (jadouglas2249@gmail.com)

Document Details

Served Document

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If you would like to remove yourself as a Service Contact from this Filing, please click [here](#) for instructions on how to do so.

EXHIBIT “B”

NO. 2026-001018-2

KATHRYN COPELAND	§	IN COUNTY COURT AT LAW
	§	
V.	§	
	§	NO. 2
WMCi X, LLC (AKA	§	
WEINSTEIN PROPERTIES DBA	§	
THE BOWERY AT SOUTHSIDE)	§	TARRANT COUNTY, TEXAS

**PLAINTIFF'S EMERGENCY MOTION TO RECONSIDER AND
VACATE ORDER GRANTING CONSOLIDATION AND
REQUEST TO HOLD ENTRY OF WRITTEN ORDER**

TO THE HONORABLE JUDGE OF SAID COURT:

I. EMERGENCY NATURE

This motion is filed on an emergency basis because the Court has orally granted consolidation based on a certificate of conference reflecting agreement. Plaintiff seeks immediate relief before entry of a written order to prevent prejudice and to correct the record.

II. CORRECTION OF THE RECORD

The Court's ruling appears to have been based on a representation that Plaintiff agreed to consolidation. That representation is incorrect.

Plaintiff did not consent to consolidation, was not consulted prior to the representation of agreement, and did not authorize any attorney to agree to consolidation on her behalf.

Immediately upon entering the hearing and learning that consolidation had been granted, Plaintiff informed the Court that she did not consent.

III. COUNSEL HAS CORRECTED THE RECORD

Plaintiff's counsel has now clarified that any indication of agreement was made in error and without authority, and has withdrawn that representation.

IV. LACK OF PROPER HEARING / NOTICE (SECONDARY SUPPORT)

Additionally, the motion to transfer/consolidate was not separately set for hearing with full notice and opportunity for response. The issue arose at a status conference and was not fully briefed or argued.

V. PREJUDICE

Consolidation prejudices Plaintiff because this action involves a statutory repair and remedy claim intended to be resolved in a streamlined and expedited manner, which would be disrupted by consolidation.

VI. REQUEST FOR RELIEF

Plaintiff respectfully requests that the Court:

- (1) refrain from entering any written order granting consolidation;
 - (2) vacate or reconsider any oral ruling granting consolidation; and
 - (3) set the issue for hearing, if necessary, with proper notice and opportunity to be heard.
-

VII. EVIDENCE

Plaintiff attaches the following:

Exhibit A – Unsworn Declaration of Kathryn Copeland

Exhibit B – Correspondence from Plaintiff's counsel correcting the record

PRAYER

Plaintiff respectfully requests all relief to which she is justly entitled.

Respectfully submitted,
/s/ John Allen Douglas
JOHN ALLEN DOUGLAS
State Bar No. 24028865
6628 Briar Ridge Lane
Plano, Texas 75024
Tel: (945) 544-8650
John@JADouglasLaw.com

COUNSEL FOR PLAINTIFF,
KATHRYN COPELAND

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the above and foregoing instrument was served on counsel of record this April 9, 2026 in accordance with the Texas Rules of Civil Procedure.

Via Electronic Service

Glynis Zavarelli
gzavarelli@wandzlaw.com

Michelle Sortor
msortor@wandzlaw.com

/s/ John Allen Douglas
JOHN ALLEN DOUGLAS

Exhibit A

NO. 2026-001018-2

KATHRYN COPELAND

V.

**WMCi X, LLC (AKA
WEINSTEIN PROPERTIES DBA
THE BOWERY AT SOUTHSIDE)**

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IN COUNTY COURT AT LAW

NO. 2

TARRANT COUNTY, TEXAS

UNSWORN DECLARATION OF KATHRYN COPELAND

I, Kathryn Copeland, declare under penalty of perjury that the following is true and correct:

1. My name is Kathryn Copeland. I am over the age of eighteen, of sound mind, and capable of making this declaration. The facts stated herein are within my personal knowledge.
2. I am the **Plaintiff** in the above-referenced matter.
3. I did **not** consent to consolidation of this case with any other matter.
4. I was not consulted regarding any agreement to consolidate prior to the Court's ruling.
5. I did not authorize any attorney to represent to the Court that I agreed to consolidation.
6. Upon learning that consolidation had been granted, I promptly attempted to communicate that I do not consent to consolidation.
7. Upon entering the hearing and learning that consolidation had already been granted, I immediately informed the Court at approximately 10:55 AM—within minutes of the status conference—that I did not consent to consolidation and had not authorized any such agreement.
8. Consolidation prejudices my position because this matter involves a statutory repair and remedy claim intended to be resolved in a streamlined and expedited manner.
9. I respectfully request that the Court reconsider the order granting consolidation in light of these facts.

Respectfully submitted,



KATHRYN COPELAND

State Bar No. 24086056

405 Crawford St. #2145

Fort Worth, Texas 76104

Tel: (817) 789-8498

Katie@CopelandLawTexas.com

Plaintiff

UNSWORN DECLARATION PURSUANT TO
TEXAS CIVIL PRACTICE & REMEDIES CODE 132

“My name is Kathryn Marie Copeland, my date of birth is June 28, 1985 and my current address is 405 Crawford Street #2145, Fort Worth, TX 76104 in the United States of America. I declare under penalty of perjury that the foregoing is true and correct. Executed in Tarrant County, State of Texas, on April 9, 2026.”



KATHRYN COPELAND



From: John Douglas <john@jadouglaslaw.com>
To: Adriana R. Aguirre <araguirre@tarrantcountytx.gov>
Cc: <johndouglas2249@gmail.com>, Michelle Sortor <msortor@wandzlaw.com>, Courtney Cotten <ccotten@wandzlaw.com>, <katie@copelandlawtexas.com>, Glynis Zavarelli <gzavarelli@wandzlaw.com>
Date: 2026-04-09 11:46 am

2026.04.09UNSWORN DECLARATION OF KATHRYN COPELAND.pdf(~110 KB)

Your Honor and Counsel,

I write to promptly correct the record regarding the consolidation issue addressed at today's status conference.

Any indication that Plaintiff consented to consolidation was made in error. I did not have authority to agree to consolidation on my client's behalf, and upon conferring with her, she has confirmed that she does not consent.

I take responsibility for this misunderstanding and respectfully withdraw any prior representation that consolidation was agreed.

Immediately following the hearing, Ms. Copeland also appeared and informed the Court that she did not consent to consolidation. Because the Court's ruling appears to have been based on a certificate of conference reflecting agreement, I respectfully request that the Court refrain from entering a written order at this time, or, if already entered, allow the issue to be reconsidered so that the matter may be addressed on an accurate record.

Additionally, this issue was raised at a status conference rather than set for hearing with full notice, and Plaintiff would request an opportunity to be heard before any consolidation order is finalized.

I have attached the Unsworn Declaration of Plaintiff, Kathryn Copeland, which confirms that she did not consent to consolidation and was not consulted prior to the representation reflected in the certificate of conference.
 Thank you for the Court's consideration.

Respectfully,

John Douglas

April 6, 2026 at 4:47 PM, "Glynis Zavarelli" <gzavarelli@wandzlaw.com> wrote:

Ms. Aguirre:

Please see attached – a Motion to Transfer/Consolidate that Defendant has filed today; may we have this heard at the upcoming April 9 – Status Conference? If so- we will prepare a Notice of Hearing and file immediately.

Thank you –

Glynis L. Zavarelli

Wentz & Zavarelli, LLP

3120 Sabre Drive, Suite 170

Southlake, Texas 76092

(469) 665-9100

Cell: (817) 832-3689

From: Adriana R. Aguirre <araguirre@tarrantcountytx.gov>

Sent: Thursday, March 5, 2026 10:56 AM

To: Glynis Zavarelli <gzavarelli@wandzlaw.com>; kcopelandlaw@gmail.com

Subject: RE: Cause No. 2026-001018-2 – Emergency Motion for ADA Accommodation

Importance: High

The Court is in receipt of Plaintiff's Emergency Motion for ADA Accommodations and Defendant's Motion to Strike and Response to Plaintiff's Motion.

The Court will not be appointing Plaintiff and attorney but will allow Plaintiff to participate today via zoom with no camera. The Court has read all documents and does not believe that it will be a lengthy hearing. The hearing will proceed with accommodations requested by the Plaintiff at 11:15 a.m. today.

Thank you,

Adriana R. Aguirre

Court Coordinator for Judge Jennifer Rymell

County Court at Law No. 2, Tarrant County

100 W. Weatherford Street

2nd Floor, Room 240A

Fort Worth, TX 76196

Phone: 817-884-2762 Fax: 817-884-1393

ARAguirre@tarrantcountytx.gov

[Court 2 Web Page](#)



From: Traci D. Johnston <TDJohnston@tarrantcountytx.gov>
Sent: Thursday, March 5, 2026 9:35 AM
To: Adriana R. Aguirre <araguirre@tarrantcountytx.gov>
Subject: FW: Cause No. 2026-001018-2 -- Emergency Motion for ADA Accommodation

From: Glynis Zavarelli <gzavarelli@wandzlaw.com>
Sent: Thursday, March 5, 2026 9:34 AM
To: Traci D. Johnston <TDJohnston@tarrantcountytx.gov>
Cc: john@jadouglasslaw.com; Katie Copeland <katie@copelandlawtexas.com>; Michelle Sortor <msortor@wandzlaw.com>
Subject: RE: Cause No. 2026-001018-2 -- Emergency Motion for ADA Accommodation

EXTERNAL EMAIL ALERT! Think Before You Click!

Ms. Johnson:

We have filed a Response to Plaintiff's Motion.

We request the hearing proceed today, as scheduled. The issue is singular in nature- and is a threshold issue as to Ms. Copeland's status as a Vexatious Litigant and the impact that has on her ability to proceed pro se in this de novo appeal.

Ms. Copeland demonstrated yesterday by filing her Motion, and demonstrated later last night -- by filing a Motion to Quash in other litigation we are engaged in with her, in the 141st District Court in Tarrant County- that she is fully capable of participation. Each of the Motions she filed -- are lengthy and involved -- demonstrating her capabilities.

Notably -- In her Motion, she request to attend by zoom (as one of her suggested options for today)- and this hearing has always been set by zoom.

There appears to be nothing to prevent her from appearing this morning.

We appreciate your and the Court's assistance with this matter.

Glynis L. Zavarelli

Wentz & Zavarelli, LLP

3120 Sabre Drive, Suite 170

Southlake, Texas 76092

(469) 665-9100

Cell: (817) 832-3689

From: Katie Copeland <kcopelandlaw@gmail.com>
Sent: Wednesday, March 4, 2026 4:17 PM
To: Traci D. Johnston <TDJohnston@tarrantcountytx.gov>
Cc: john@jadouglaslaw.com; Glynis Zavarelli <gzavarelli@wandzlaw.com>
Subject: Cause No. 2026-001018-2 -- Emergency Motion for ADA Accommodation

Dear Ms. Johnston,

I want to inform the Court that I have just e-filed **Plaintiff's Emergency Motion for ADA Accommodation and Alternative Hearing Format; Request for Appointment of Counsel** in Cause No. 2026-001018-2.

The motion relates to the **March 5, 2026 hearing at 11:15 a.m.** on Defendant's Motion to Enforce Chapter 11. I am medically unable to participate in the current format.

Given the medical limitations described in the motion, I respectfully request that the Court review the filing prior to the hearing if possible. A **proposed order** is attached for the Court's convenience.

Please let me know if the Court would prefer written submission or any additional information.

Thank you for your assistance.

Kathryn Copeland

State Bar No. 24086056

Pro Se Plaintiff – Pending Appointment of Counsel

From: Traci D. Johnston <TDJohnston@tarrantcountytx.gov>
Date: Tuesday, March 3, 2026 at 9:54 AM
To: john@jadouglaslaw.com <john@jadouglaslaw.com>, gzavarelli@wandzlaw.com <gzavarelli@wandzlaw.com>
Subject: CCL2 Zoom Hearing - Thursday, March 5, 2026

Traci Johnston, Court Reporter is inviting you to a scheduled Zoom meeting.

2026-001018-2; Kathryn Copeland vs. WMCI X d/b/a The Bowery at Southside

Topic: CCL2 Zoom Hearings - Thursday, March 5, 2026

Time: Mar 5, 2026 11:15 AM Central Time (US and Canada)

Join Zoom Meeting

<https://txcourts.zoom.us/j/89143243066>

Meeting ID: 891 4324 3066

One tap mobile

+13092053325,,89143243066# US

+13126266799,,89143243066# US (Chicago)

Join by SIP

• 89143243066@zoomcrc.com

Join instructions

<https://txcourts.zoom.us/join/89143243066?signature=LO-QsHZrlw4YcwF9HfEsVcAfUygcYQj5U5KtCTudFTU>

Traci Johnston, CSR

Official Court Reporter

County Court at Law No. 2

100 West Weatherford, Room 240A

Fort Worth, TX 76096

(817)884-1846

tjohnston@tarrantcountytx.gov

EXHIBIT “C”

Michelle Sortor

From: John Douglas <john@jadouglaslaw.com>
Sent: Thursday, April 9, 2026 11:46 AM
To: Adriana R. Aguirre
Cc: johndouglas2249@gmail.com; Michelle Sortor; Courtney Cotten; katie@copelandlawtexas.com; Glynis Zavarelli
Subject: URGENT – Clarification Regarding Consolidation Cause No. 2026-001018-2 – Emergency Motion for ADA Accommodation
Attachments: 2026.04.09UNSWORN DECLARATION OF KATHRYN COPELAND.pdf

Your Honor and Counsel,

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I have attached the Unsworn Declaration of Plaintiff, Kathryn Copeland, which confirms that she did not consent to consolidation and was not consulted prior to the representation reflected in the certificate of conference.

Thank you for the Court's consideration.

Respectfully,

John Douglas

April 6, 2026 at 4:47 PM, "Glynis Zavarelli" <gzavarelli@wandzlaw.com> wrote:

Ms. Aguirre:

Case 4:26-cv-00585-O-BP Document 33 Filed 05/13/26 Page 70 of 104 PageID 1731
Please see attached – a Motion to Transfer/Consolidate that Defendant has filed today; may we have this heard at the upcoming April 9 – Status Conference? If so- we will prepare a Notice of Hearing and file immediately.

Thank you –

Glynis L. Zavarelli

Wentz & Zavarelli, LLP

3120 Sabre Drive, Suite 170

Southlake, Texas 76092

(469) 665-9100

Cell: (817) 832-3689

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Sent: Thursday, March 5, 2026 10:56 AM
To: Glynis Zavarelli <gzavarelli@wandzlaw.com>; kcopelandlaw@gmail.com
Subject: RE: Cause No. 2026-001018-2 – Emergency Motion for ADA Accommodation
Importance: High

Dear Parties,

The Court is in receipt of Plaintiff's Emergency Motion for ADA Accommodations and Defendant's Motion to Strike and Response to Plaintiff's Motion.

The Court will not be appointing Plaintiff and attorney but will allow Plaintiff to participate today via zoom with no camera. The Court has read all documents and does not believe that it will be a lengthy hearing. The hearing will proceed with accommodations requested by the Plaintiff at 11:15 a.m. today.

Adriana R. Aguirre

Court Coordinator for Judge Jennifer Rymell

County Court at Law No. 2, Tarrant County

100 W. Weatherford Street

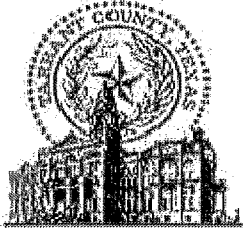
2nd Floor, Room 240A

Fort Worth, TX 76196

Phone: 817-884-2762 Fax: 817-884-1393

ARAguirre@tarrantcountytx.gov

Court 2 Web Page



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Cc: john@jadouglasslaw.com; Katie Copeland <katie@copelandlawtexas.com>; Michelle Sortor <msortor@wandzlaw.com>
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EXTERNAL EMAIL ALERT! Think Before You Click!

Ms. Johnson:

We have filed a Response to Plaintiff's Motion.

We request the hearing proceed today, as scheduled. The issue is singular in nature- and is a threshold issue as to Ms. Copeland's status as a Vexatious Litigant and the impact that has on her ability to proceed pro se in this de novo appeal.

Ms. Copeland demonstrated yesterday by filing her Motion, and demonstrated later last night – by filing a Motion to Quash in other litigation we are engaged in with her, in the 141st District Court in Tarrant County- that she is fully capable of participation. Each of the Motions she filed – are lengthy and involved – demonstrating her capabilities.

Notably - In her Motion, she request to attend by zoom (as one of her suggested options for today)- and this hearing has always been set by zoom.

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We appreciate your and the Court's assistance with this matter.

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Cell: (817) 832-3689

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Cc: john@jadouglaslaw.com; Glynis Zavarelli <gzavarelli@wandzlaw.com>
Subject: Cause No. 2026-001018-2 – Emergency Motion for ADA Accommodation

Dear Ms. Johnston,

I want to inform the Court that I have just e-filed **Plaintiff's Emergency Motion for ADA Accommodation and Alternative Hearing Format; Request for Appointment of Counsel** in Cause No. 2026-001018-2.

The motion relates to the **March 5, 2026 hearing at 11:15 a.m.** on Defendant's Motion to Enforce Chapter 11. I am medically unable to participate in the current format.

Given the medical limitations described in the motion, I respectfully request that the Court review the filing prior to the hearing if possible. A **proposed order** is attached for the Court's convenience.

Please let me know if the Court would prefer written submission or any additional information.

Thank you for your assistance.

Kathryn Copeland

State Bar No. 24086056

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Subject: CCL2 Zoom Hearing - Thursday, March 5, 2026

Traci Johnston. Court Reporter is inviting you to a scheduled Zoom meeting.

2026-001018-2; Kathryn Copeland vs. WMCi X d/b/a The Bowery at Southside

Topic: CCL2 Zoom Hearings - Thursday, March 5, 2026

Time: Mar 5, 2026 11:15 AM Central Time (US and Canada)

Join Zoom Meeting

<https://txcourts.zoom.us/j/89143243066>

Meeting ID: 891 4324 3066

One tap mobile

+13092053325,,89143243066# US

+13126266799,,89143243066# US (Chicago)

Join by SIP

- 89143243066@zoomcrc.com

Join instructions

<https://txcourts.zoom.us/join/89143243066?signature=LO-OsHZrlw4YcwF9HfEsVcAfUygcYQj5U5KtCTudFTU>

Traci Johnston, CSR

Official Court Reporter

County Court at Law No. 2

100 West Weatherford, Room 240A

Fort Worth, TX 76096

(817)884-1846

tdjohnston@tarrantcountytexas.gov

EXHIBIT “D”

CAUSE NO. 2026-001018-2

KATHRYN COPELAND	§	IN THE COUNTY COURT
	§	
Plaintiff	§	
	§	
v.	§	AT LAW NO. 2
	§	
WMCI DALLAS X, LLC	§	
	§	
Defendant	§	TARRANT COUNTY, TEXAS
	§	

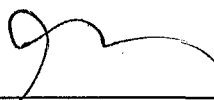
AFFIDAVIT OF GLYNIS L. ZAVARELLI

1. "My name is Glynis L. Zavarelli. I am over the age of twenty-one (21), have never been convicted of a felony or crime of moral turpitude and am fully competent to make this affidavit. I have personal knowledge of the facts stated herein, which are true and correct.
2. I am one the attorneys representing the Defendant in this matter. Additionally attorney, Michelle S. Sortor, and legal assistant Courtney Cotten, are also working on this case.
3. I prepared and filed a Motion for Transfer/Consolidation with Pending Litigation in the 141st Judicial District Court. This was filed on April 6, 2026. Prior to filing the Motion, I made two attempts to discuss the subject matter of the Motion with John Douglas, who represents Plaintiff in this lawsuit. The first attempt was on March 27, 2026. I left a voicemail message for Mr. Douglas and did not receive a return call. The second attempt was on April 6, 2026 (and before I filed the Motion). I did not, at that time, receive a return call and finalized the Motion, filing it that day, with a Certificate of Conference which accurately reflected my attempts to confer with Mr. Douglas.
4. The court set this Motion to be heard, at the same date and time as the scheduled Status Conference, which had been scheduled to take place on April 9, 2026. I prepared a hearing notice and filed the hearing notice on April 7, 2026.

5. On April 8, 2026, Mr. Douglas returned my calls and the call was placed on speaker phone and Michelle Sortor and Courtney Cotton were present and heard the conversation. We discussed the Motion. He stated that he was in agreement with the transfer and consolidation of this case with the litigation pending in the 141st Judicial District Court. I indicated I would prepare and file an Amended Certificate of Conference; this was prepared and filed on April 8, 2026.
6. Additionally, during the call with Mr. Douglas, on April 8, 2026, we discussed that we would still need to attend the scheduled hearing and Scheduling Conference and Mr. Douglas stated that he intended to be in attendance, on zoom.
7. On April 9, 2026, I prepared for the hearing and Status Conference and timely appeared. Mr. Douglas did not make an appearance. The Court noted the Amended Certificate of Conference, and noting an agreement had been reached on the Motion to Transfer/Consolidation with Pending Litigation in the 141st Judicial District Court, granted the Motion.
8. I then received the attached email which represented to be from "John Douglas", attached hereto as **Exhibit "1"**. This email references an "Unsworn Declaration of Plaintiff Kathryn Copeland and attached a copy of this. Thereafter, I received a copy of an efiled document: Plaintiff's Emergency Motion to Reconsider and Vacate Order Granting Consolidation and Request to Hold Entry of Written Order (as well as a proposed Order for same). The Motion, as to the Notification of Service, shows this to have been filed by "John Douglas" and the Motion itself includes a typed signature for Mr. Douglas.
9. Court staff sent email correspondence to Mr. Douglas and all counsel, as well as a Notice of Zoom Hearing, re setting the Motion to Transfer/Consolidation for April 17, 2026.
10. Given the merit of the Motion to Transfer/Consolidation and Mr. Douglas' prior agreement to same, I contacted Mr. Douglas to conference with him on the Response that would be filed to Plaintiff's Emergency Motion to Reconsider and Vacate Order Granting Consolidation and Request to Hold Entry of Written Order, which would include a Motion for Sanctions, in the form of a request for Defendant's attorney's fees. I did not immediately get in touch with him, but he returned my call. When I asked if Mr. Douglas was in agreement with a sanction (attorneys fees to be awarded to Defendant), he responded "no" and stated that he had not authorized the filing of Plaintiff's Emergency Motion to Reconsider and Vacate Order. He further explained that he did not prepare the Motion, did not sign the Motion and did not file the Motion. When I asked if he thought Ms. Copeland had filed this, signing his name and without authority, he indicated that this is what had happened.

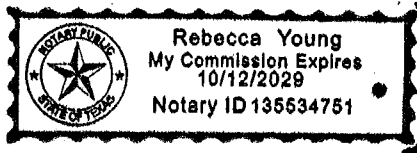
11. I asked if Mr. Douglas had sent the email (which is attached as **Exhibit "1"** to this Affidavit) and he said "no" and further explained that he had no knowledge of an April 9th email being sent earlier that day. I asked if the email account for the email address identified for him was an email account that Plaintiff, Kathryn Copeland has access to, he affirmed that she did.
12. During this April 9, 2026 call, I informed Mr. Douglas that he was on speaker phone and that attorney, Michelle Sortor had heard the conversation, as had legal assistant Courtney Cotten and that we would all be signing and filing Affidavits on April 13, 2026 which describe the phone call and the information he provided regarding the unauthorized use of his email (as related to the email sent on April 9, 2026 and which purports to be sent from him) and unauthorized pleading that was filed on April 9- and which bears his typed signature. He indicated that he understood.
13. Since April 9, 2026, another pleading has been filed in this Court, on April 12, 2026 at 10:27 pm. This pleading indicates on the e file Notification of Service that John Douglas is the person who filed the pleading. See attached as **Exhibit "2"** a copy of said Notice. The pleading itself bears the typed signature of Mr. Douglas. This pleading is labeled: Plaintiff's Verified Notice of Void Vexatious Litigant Orders.
14. I contacted Mr. Douglas on April 13, 2026 and asked if the Verified Notice of Void Vexatious Litigant Orders was prepared by him, signed by him and /or filed by him and he said "no". I asked if he authorized this to be done and he said "no". This call was placed on speaker phone, and legal assistant Courtney Cotten was present and heard the conversation.
15. The course of events as described herein are concerning. The purpose of this Affidavit is to bring this to the Court's attention, for consideration and additional inquiry and to further request that if this Court determines that the April 9, 2026 email and pleading (both of which represent to be sent and/or filed by John Douglas) and the April 12, 2026 pleading which represents that it was filed by and signed by John Douglas- all were instead drafted, sent and/or filed by Plaintiff Kathryn Copeland without Mr. Douglas' authority (as has been indicated by Mr. Douglas), that this Court determine necessary and appropriate sanctions for such conduct."

Further affiant sayeth not.



GLYNIS L. ZAVARELLI

SUBSCRIBED AND SWORN TO BEFORE ME, by the said GLYNIS L. ZAVARELLI, on this the 13th day of April, 2026.



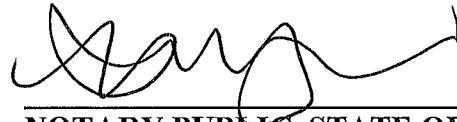

NOTARY PUBLIC, STATE OF TEXAS
My Commission Expires 10/12/2029

EXHIBIT “1”

Glynis Zavarelli

From: John Douglas <john@jadouglaslaw.com>
Sent: Thursday, April 9, 2026 11:46 AM
To: Adriana R. Aguirre
Cc: johndouglas2249@gmail.com; Michelle Sortor; Courtney Cotten; katie@copelandlawtexas.com; Glynis Zavarelli
Subject: URGENT – Clarification Regarding Consolidation Cause No. 2026-001018-2 – Emergency Motion for ADA Accommodation
Attachments: 2026.04.09UNSWORN DECLARATION OF KATHRYN COPELAND.pdf

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Respectfully,

John Douglas

April 6, 2026 at 4:47 PM, "Glynis Zavarelli" <gzavarelli@wandzlaw.com> wrote:

Ms. Aguirre:

Case 4:26-cv-00585-CBP Document 33 Filed 05/13/26 Page 82 of 104 Reg'd 1743
Please see attached - a Motion to Transfer/consolidate that Defendant has filed today. May we have this heard at the upcoming April 9 – Status Conference? If so- we will prepare a Notice of Hearing and file immediately.

Thank you -

Glynis L. Zavarelli

Wentz & Zavarelli, LLP

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Cell: (817) 832-3689

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Importance: High

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EXHIBIT “2”

Glynis Zavarelli

From: no-reply@efilingmail.tylertech.cloud
Sent: Sunday, April 12, 2026 10:28 PM
To: Glynis Zavarelli
Subject: Notification of Service for Case: 2026-001018-2, Kathryn CopelandvsWMCi X, LLC d/b/a The Bowery at Southside for filing Notice, Envelope Number: 113544171

Notification of Service

Case Number: 2026-001018-2
 Case Style: Kathryn CopelandvsWMCi X, LLC
 d/b/a The Bowery at Southside
 Envelope Number: 113544171

This is a notification of service for the filing listed. Please click the link below to retrieve the submitted document. If the link does not work, please copy the link and paste into your browser. You can also obtain this document by following the steps on this [article](#).

Filing Details

Case Number	2026-001018-2
Case Style	Kathryn CopelandvsWMCi X, LLC d/b/a The Bowery at Southside
Date/Time Submitted	4/12/2026 10:27 PM CST
Filing Type	Notice
Filing Description	Plaintiff's Verified Notice of Void Vexatious Litigant Orders
Filed By	John Douglas
Service Contacts	Other Service Contacts not associated with a party on the case: Glynis Zavarelli (gzavarelli@wandzlaw.com) Michelle Sortor (msortor@wandzlaw.com) Courtney Cotten (ccotten@wandzlaw.com) Rebecca Young (ryoung@wandzlaw.com) Aayush Dhurka (adhurka@wandzlaw.com) Kathryn Copeland (kcopelandlaw@gmail.com)

Document Details

Served Document	Download Document
This link is active for 45 days. To access this document, you will be required to enter your email address. Click here for more information.	

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 Case Style: Kathryn CopelandvsWMCi X, LLC
 d/b/a The Bowery at Southside
 Envelope Number: 113544171

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Filing Details	
Case Number	2026-001018-2
Case Style	Kathryn CopelandvsWMCi X, LLC d/b/a The Bowery at Southside
Date/Time Submitted	4/12/2026 10:27 PM CST
Filing Type	Notice
Filing Description	Plaintiff's Verified Notice of Void Vexatious Litigant Orders
Filed By	John Douglas
Service Contacts	Other Service Contacts not associated with a party on the case: Glynis Zavarelli (gzavarelli@wandzlaw.com) Michelle Sortor (msortor@wandzlaw.com) Courtney Cotten (ccotten@wandzlaw.com) Rebecca Young (ryoung@wandzlaw.com) Aayush Dhurka (adhurka@wandzlaw.com) Kathryn Copeland (kcopelandlaw@gmail.com)

Document Details	
Served Document	Download Document
This link is active for 45 days. To access this document, you will be required to enter your email address. Click here for more information.	

EXHIBIT “E”

CAUSE NO. 2026-001018-2

KATHRYN COPELAND

Plaintiff

v.

WMCI DALLAS X, LLC

Defendant

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§

IN THE COUNTY COURT

AT LAW NO. 2

TARRANT COUNTY, TEXAS

AFFIDAVIT OF MICHELLE S. SORTOR

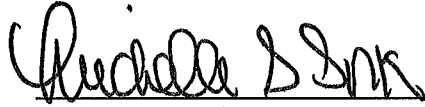
1. “My name is Michelle S. Sortor. I am over the age of twenty-one (21), have never been convicted of a felony or crime of moral turpitude and am fully competent to make this affidavit. I have personal knowledge of the facts stated herein, which are true and correct.
2. I am one the attorneys representing the Defendant in this matter. Additionally, attorney Glynis L. Zavarelli, and legal assistant Courtney Cotten, are also working on this case.
3. Ms. Zavarelli prepared and filed a Motion for Transfer/Consolidation with Pending Litigation in the 141st Judicial District Court. This was filed on April 6, 2026.
4. The court set this Motion to be heard, at the same date and time as the scheduled Status Conference, which had been scheduled to take place on April 9, 2026. A Notice of Hearing was prepared and filed on April 7, 2026.
5. On April 8, 2026, Mr. Douglas called Ms. Zavarelli and the call was placed on speaker phone. I heard the conversation. They discussed the Motion. Mr. Douglas stated that he was in agreement with the transfer and consolidation of this case with the litigation pending in the 141st Judicial District Court. An Amended Certificate of Conference; was prepared and filed on April 8, 2026.
6. On April 9, 2026, after the hearing was held on Defendant’s Motion to Transfer/Consolidation was heard, I was copied on an email, which purported to be from “John Douglas”. This email is attached as Exhibit “1”.
7. Thereafter, I received a Notification of Service and a copy of an e-filed document: Plaintiff’s Emergency Motion to Reconsider and Vacate Order Granting Consolidation and Request to Hold Entry of Written Order (as well as

a proposed Order for same). The Motion, as to the Notification of Service, shows this to have been filed by "John Douglas" and the Motion itself includes a typed signature for Mr. Douglas.

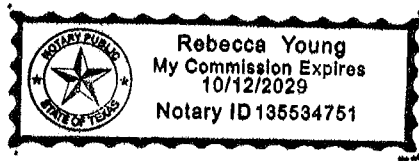
8. Court staff sent email correspondence to Mr. Douglas and all counsel, as well as a Notice of Zoom Hearing, resetting the Motion to Transfer/Consolidation for April 17, 2026.
9. Given the merit of the Motion to Transfer/Consolidation and Mr. Douglas' prior agreement to same, Ms. Zavarelli contacted Mr. Douglas to conference with him on the Response that would be filed to Plaintiff's Emergency Motion to Reconsider and Vacate Order Granting Consolidation and Request to Hold Entry of Written Order, which would include a Motion for Sanctions, in the form of a request for Defendant's attorney's fees. She did not initially reach him.
10. Mr. Douglas contacted Ms. Zavarelli (after she had called to speak with him). Ms. Zavarelli took the call and placed it on speaker phone. I was present and heard the conversation. Ms. Zavarelli asked if Mr. Douglas was in agreement with a sanction (attorney's fees to be awarded to Defendant), he responded "no" and stated that he had not authorized the filing of Plaintiff's Emergency Motion to Reconsider and Vacate Order. He further explained that he did not prepare the Motion, did not sign the Motion, and did not file the Motion. When he was asked if he thought Ms. Copeland had filed this, signing his name and without authority, he indicated that this is what had happened.
11. Ms. Zavarelli then asked if Mr. Douglas had sent the email (which is attached as Exhibit "1" to this Affidavit) and he said "no" and further explained that he had no knowledge of the email. Mr. Douglas was asked if the email account from which this was sent was an email account that Plaintiff, Kathryn Copeland has access to, he affirmed that she did.
12. Ms. Zavarelli informed Mr. Douglas that he was on speaker phone and that I had heard the conversation, as had legal assistant Courtney Cotton, and that we would all be signing and filing Affidavits on April 13, 2026 which describe the phone call and the information he provided regarding the unauthorized use of his email (as related to the email sent on April 9, 2026 and which purports to be sent from him) and unauthorized pleading that was filed on April 9 - and which bears his typed signature. He indicated that he understood.
13. The course of events as described herein are concerning. The purpose of this Affidavit is to bring this to the Court's attention, for consideration and additional inquiry and to further request that if this Court determines that the April 9, 2026 email and pleading (both of which represent to be sent and/or filed by John Douglas) and the April 12, 2026 pleading which represents that it was filed by and signed by John Douglas - all were instead drafted, sent, and/or

filed by Plaintiff Kathryn Copeland without Mr. Douglas' authority (as has been indicated by Mr. Douglas), that this Court determine necessary and appropriate sanctions for such conduct."

Further affiant sayeth not.


MICHELLE S. SORTOR

SUBSCRIBED AND SWORN TO BEFORE ME, by the said MICHELLE S. SORTOR, on this the 13th day of April, 2026.




NOTARY PUBLIC, STATE OF TEXAS
My Commission Expires 10/12/2029

Michelle Sortor

From: John Douglas <john@jadouglaslaw.com>
Sent: Thursday, April 9, 2026 11:46 AM
To: Adriana R. Aguirre
Cc: johndouglas2249@gmail.com; Michelle Sortor; Courtney Cotten; katie@copelandlawtexas.com; Glynis Zavarelli
Subject: URGENT – Clarification Regarding Consolidation Cause No. 2026-001018-2 – Emergency Motion for ADA Accommodation
Attachments: 2026.04.09UNSWORN DECLARATION OF KATHRYN COPELAND.pdf

Your Honor and Counsel,

I write to promptly correct the record regarding the consolidation issue addressed at today's status conference.

Any indication that Plaintiff consented to consolidation was made in error. I did not have authority to agree to consolidation on my client's behalf, and upon conferring with her, she has confirmed that she does not consent.

I take responsibility for this misunderstanding and respectfully withdraw any prior representation that consolidation was agreed.

Immediately following the hearing, Ms. Copeland also appeared and informed the Court that she did not consent to consolidation.

Because the Court's ruling appears to have been based on a certificate of conference reflecting agreement, I respectfully request that the Court refrain from entering a written order at this time, or, if already entered, allow the issue to be reconsidered so that the matter may be addressed on an accurate record.

Additionally, this issue was raised at a status conference rather than set for hearing with full notice, and Plaintiff would request an opportunity to be heard before any consolidation order is finalized.

I have attached the Unsworn Declaration of Plaintiff, Kathryn Copeland, which confirms that she did not consent to consolidation and was not consulted prior to the representation reflected in the certificate of conference.

Thank you for the Court's consideration.

Respectfully,

John Douglas

April 6, 2026 at 4:47 PM, "Glynis Zavarelli" <gzavarelli@wandzlaw.com> wrote:

Ms. Aguirre:

Case 4:26-cv-00585-O-BP Document 33 Filed 05/13/26 Page 91 of 104 PageID 1752
Please see attached – a Motion to Transfer/Consolidate that Defendant has filed today; may we have this heard at the upcoming April 9 – Status Conference? If so- we will prepare a Notice of Hearing and file immediately.

Thank you –

Glynis L. Zavarelli

Wentz & Zavarelli, LLP

3120 Sabre Drive, Suite 170

Southlake, Texas 76092

(469) 665-9100

Cell: (817) 832-3689

From: Adriana R. Aguirre <araguirre@tarrantcountytx.gov>
Sent: Thursday, March 5, 2026 10:56 AM
To: Glynis Zavarelli <gzavarelli@wandzlaw.com>; kcopelandlaw@gmail.com
Subject: RE: Cause No. 2026-001018-2 – Emergency Motion for ADA Accommodation
Importance: High

Dear Parties,

The Court is in receipt of Plaintiff's Emergency Motion for ADA Accommodations and Defendant's Motion to Strike and Response to Plaintiff's Motion.

The Court will not be appointing Plaintiff and attorney but will allow Plaintiff to participate today via zoom with no camera. The Court has read all documents and does not believe that it will be a lengthy hearing. The hearing will proceed with accommodations requested by the Plaintiff at 11:15 a.m. today.

Adriana R. Aguirre

Court Coordinator for Judge Jennifer Rymell

County Court at Law No. 2, Tarrant County

100 W. Weatherford Street

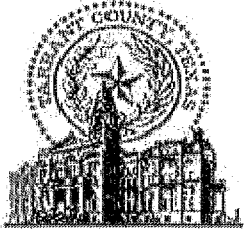
2nd Floor, Room 240A

Fort Worth, TX 76196

Phone: 817-884-2762 Fax: 817-884-1393

ARAguirre@tarrantcountytx.gov

Court 2 Web Page



From: Traci D. Johnston <TDJohnston@tarrantcountytx.gov>
Sent: Thursday, March 5, 2026 9:35 AM
To: Adriana R. Aguirre <araguirre@tarrantcountytx.gov>
Subject: FW: Cause No. 2026-001018-2 – Emergency Motion for ADA Accommodation

From: Glynis Zavarelli <gzavarelli@wandzlaw.com>
Sent: Thursday, March 5, 2026 9:34 AM
To: Traci D. Johnston <TDJohnston@tarrantcountytx.gov>
Cc: john@jadouglasslaw.com; Katie Copeland <katie@copelandlawtexas.com>; Michelle Sortor <mssortor@wandzlaw.com>
Subject: RE: Cause No. 2026-001018-2 – Emergency Motion for ADA Accommodation

EXTERNAL EMAIL ALERT! Think Before You Click!

Ms. Johnson:

We have filed a Response to Plaintiff's Motion.

We request the hearing proceed today, as scheduled. The issue is singular in nature- and is a threshold issue as to Ms. Copeland's status as a Vexatious Litigant and the impact that has on her ability to proceed pro se in this de novo appeal.

Ms. Copeland demonstrated yesterday by filing her Motion, and demonstrated later last night – by filing a Motion to Quash in other litigation we are engaged in with her, in the 141st District Court in Tarrant County- that she is fully capable of participation. Each of the Motions she filed – are lengthy and involved – demonstrating her capabilities.

Notably - In her Motion, she request to attend by zoom (as one of her suggested options for today)- and this hearing has always been set by zoom.

There appears to be nothing to prevent her from appearing this morning.

We appreciate your and the Court's assistance with this matter.

Glynis L. Zavarelli

Wentz & Zavarelli, LLP

3120 Sabre Drive, Suite 170

Southlake, Texas 76092

(469) 665-9100

Cell: (817) 832-3689

From: Katie Copeland <kcopelandlaw@gmail.com>
Sent: Wednesday, March 4, 2026 4:17 PM
To: Traci D. Johnston <TDJohnston@tarrantcountytx.gov>
Cc: john@jadouglaslaw.com; Glynis Zavarelli <gzavarelli@wandzlaw.com>
Subject: Cause No. 2026-001018-2 – Emergency Motion for ADA Accommodation

Dear Ms. Johnston,

I want to inform the Court that I have just e-filed **Plaintiff's Emergency Motion for ADA Accommodation and Alternative Hearing Format; Request for Appointment of Counsel** in Cause No. 2026-001018-2.

The motion relates to the **March 5, 2026 hearing at 11:15 a.m.** on Defendant's Motion to Enforce Chapter 11. I am medically unable to participate in the current format.

Given the medical limitations described in the motion, I respectfully request that the Court review the filing prior to the hearing if possible. A **proposed order** is attached for the Court's convenience.

Please let me know if the Court would prefer written submission or any additional information.

Thank you for your assistance.

Kathryn Copeland

State Bar No. 24086056

Pro Se Plaintiff – Pending Appointment of Counsel

From: Traci D. Johnston <TDJohnston@tarrantcountytx.gov>
Date: Tuesday, March 3, 2026 at 9:54 AM
To: john@jadouglaslaw.com <john@jadouglaslaw.com>, gzavarelli@wandzlaw.com <gzavarelli@wandzlaw.com>
Subject: CCL2 Zoom Hearing - Thursday, March 5, 2026

Traci Johnston. Court Reporter is inviting you to a scheduled Zoom meeting.

2026-001018-2; Kathryn Copeland vs. WMCi X d/b/a The Bowery at Southside

Topic: CCL2 Zoom Hearings - Thursday, March 5, 2026

Time: Mar 5, 2026 11:15 AM Central Time (US and Canada)

Join Zoom Meeting

<https://txcourts.zoom.us/j/89143243066>

Meeting ID: 891 4324 3066

One tap mobile

+13092053325,,89143243066# US

+13126266799,,89143243066# US (Chicago)

Join by SIP

- 89143243066@zoomcrc.com

Join instructions

<https://txcourts.zoom.us/join/89143243066?signature=LO-OsHZrlw4YcwF9HfEsVcAfUygcYQj5U5KtCTudFTU>

Traci Johnston, CSR

Official Court Reporter

County Court at Law No. 2

100 West Weatherford, Room 240A

Fort Worth, TX 76096

(817)884-1846

tdjohnston@tarrantcountytexas.gov

EXHIBIT “F”

CAUSE NO. 2026-001018-2

KATHRYN COPELAND

Plaintiff

v.

WMCI DALLAS X, LLC

Defendant

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IN THE COUNTY COURT

AT LAW NO. 2

TARRANT COUNTY, TEXAS

AFFIDAVIT OF COURTNEY COTTEN

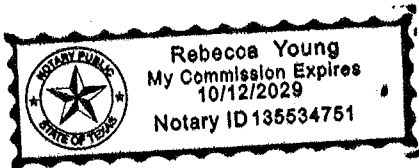
1. "My name is Courtney Cotten. I am over the age of twenty-one (21), have never been convicted of a felony or crime of moral turpitude and am fully competent to make this affidavit. I have personal knowledge of the facts stated herein, which are true and correct.
2. I am the legal assistant working on this case.
3. Ms. Zavarelli prepared and filed a Motion for Transfer/Consolidation with Pending Litigation in the 141st Judicial District Court. This was filed on April 6, 2026.
4. The court set this Motion to be heard, at the same date and time as the scheduled Status Conference, which had been scheduled to take place on April 9, 2026. A Notice of Hearing was prepared and filed on April 7, 2026.
5. On April 8, 2026, Mr. Douglas called Ms. Zavarelli and the call was placed on speaker phone. I heard the conversation. They discussed the Motion. Mr. Douglas stated that he was in agreement with the transfer and consolidation of this case with the litigation pending in the 141st Judicial District Court. An Amended Certificate of Conference was prepared and filed on April 8, 2026.

6. On April 9, 2026, after the hearing was held on Defendant's Motion to Transfer/Consolidation, I was copied on an email, which purported to be from "John Douglas". This email is attached as Exhibit "1".
7. Thereafter, I received a copy of an efiled document: Plaintiff's Emergency Motion to Reconsider and Vacate Order Granting Consolidation and Request to Hold Entry of Written Order (as well as a proposed Order for same). The Motion, as to the Notification of Service, shows this to have been filed by "John Douglas" and the Motion itself includes a typed signature for Mr. Douglas.
8. On April 9, 2026, Mr. Douglas contacted Ms. Zavarelli (after she had called to speak with him). Ms. Zavarelli took the call and placed it on speaker phone. I was present to hear the conversation. Ms. Zavarelli asked if Mr. Douglas was in agreement with a sanction (attorneys fees to be awarded to Defendant), he responded "no" and stated that he had not authorized the filing of Plaintiff's Emergency Motion to Reconsider and Vacate Order. He further explained that he did not prepare the Motion, did not sign the Motion and did not file the Motion. When he was asked if he thought Ms. Copeland had filed this, signing his name and without authority, he indicated that this is what had happened.
9. Ms. Zavarelli then asked if Mr. Douglas had sent the email (which is attached as Exhibit "1" to this Affidavit) and he said "no" and further explained that he had no knowledge of the email. Mr. Douglas was asked if the email account from which this was sent was an email account that Plaintiff, Kathryn Copeland has access to, he affirmed that she did.
10. Ms. Zavarelli informed Mr. Douglas that he was on speaker phone and that I had heard the conversation, as had attorney Michelle Sortor, and that we would all be signing and filing Affidavits on April 13, 2026 which describe the phone call and the information he provided regarding the unauthorized use of his email (as related to the email sent on April 9, 2026 and which purports to be sent from him) and unauthorized pleading that was filed on April 9- and which bears his typed signature. He indicated that he understood.
11. Since April 9, 2026, another pleading has been filed in this Court, on April 12, 2026 at 10:27 p.m. This pleading indicates on the e file Notification of Service that John Douglas is the person who filed the pleading. See attached as Exhibit "2" a copy of said Notice. The pleading itself bears the typed signature of Mr. Douglas. This pleading is labeled: Plaintiff's Verified Notice of Void Vexatious Litigant Orders.
12. Ms. Zavarelli contacted Mr. Douglas on April 13, 2026, and this call was placed on speaker phone. I was present and heard the conversation. Ms. Zavarelli asked if the Verified Notice of Void Vexatious Litigant Orders was prepared by him, signed by him and /or filed by him and he said "no". Ms. Zavarelli asked if he authorized this to be done and he said "no".

Further affiant sayeth not.

Courtney Cotten
COURTNEY COTTEN

SUBSCRIBED AND SWORN TO BEFORE ME, by the said COURTNEY COTTEN
on this the 13th day of April, 2026.



[Signature]
NOTARY PUBLIC, STATE OF TEXAS
My Commission Expires 10/12/2029

EXHIBIT “1”

Glynis Zavarelli

From: John Douglas <john@jadouglaslaw.com>
Sent: Thursday, April 9, 2026 11:46 AM
To: Adriana R. Aguirre
Cc: johndouglas2249@gmail.com; Michelle Sortor; Courtney Cotten; katie@copelandlawtexas.com; Glynis Zavarelli
Subject: URGENT – Clarification Regarding Consolidation Cause No. 2026-001018-2 – Emergency Motion for ADA Accommodation
Attachments: 2026.04.09UNSWORN DECLARATION OF KATHRYN COPELAND.pdf

Your Honor and Counsel,

I write to promptly correct the record regarding the consolidation issue addressed at today's status conference.

Any indication that Plaintiff consented to consolidation was made in error. I did not have authority to agree to consolidation on my client's behalf, and upon conferring with her, she has confirmed that she does not consent.

I take responsibility for this misunderstanding and respectfully withdraw any prior representation that consolidation was agreed.

Immediately following the hearing, Ms. Copeland also appeared and informed the Court that she did not consent to consolidation.

Because the Court's ruling appears to have been based on a certificate of conference reflecting agreement, I respectfully request that the Court refrain from entering a written order at this time, or, if already entered, allow the issue to be reconsidered so that the matter may be addressed on an accurate record.

Additionally, this issue was raised at a status conference rather than set for hearing with full notice, and Plaintiff would request an opportunity to be heard before any consolidation order is finalized.

I have attached the Unsworn Declaration of Plaintiff, Kathryn Copeland, which confirms that she did not consent to consolidation and was not consulted prior to the representation reflected in the certificate of conference.

Thank you for the Court's consideration.

Respectfully,

John Douglas

April 6, 2026 at 4:47 PM, "Glynis Zavarelli" <gzavarelli@wandzlaw.com> wrote:

Ms. Aguirre:

Case 4:26-cv-00585-OBP Document 33 Filed 05/18/26 Page 102 of 104 PageID 1763
Please see attached - a Motion to Transfer/Consolidate that Defendant has filed today. May we have this heard at the upcoming April 9 - Status Conference? If so- we will prepare a Notice of Hearing and file immediately.

Thank you -

Glynis L. Zavarelli

Wentz & Zavarelli, LLP

3120 Sabre Drive, Suite 170

Southlake, Texas 76092

(469) 665-9100

Cell: (817) 832-3689

From: Adriana R. Aguirre <araguirre@tarrantcountytx.gov>
Sent: Thursday, March 5, 2026 10:56 AM
To: Glynis Zavarelli <gzavarelli@wandzlaw.com>; kcopelandlaw@gmail.com
Subject: RE: Cause No. 2026-001018-2 – Emergency Motion for ADA Accommodation
Importance: High

Dear Parties,

The Court is in receipt of Plaintiff's Emergency Motion for ADA Accommodations and Defendant's Motion to Strike and Response to Plaintiff's Motion.

The Court will not be appointing Plaintiff and attorney but will allow Plaintiff to participate today via zoom with no camera. The Court has read all documents and does not believe that it will be a lengthy hearing. The hearing will proceed with accommodations requested by the Plaintiff at 11:15 a.m. today.

EXHIBIT “2”

Glynis Zavarelli

From: no-reply@efilingmail.tylertech.cloud
Sent: Sunday, April 12, 2026 10:28 PM
To: Glynis Zavarelli
Subject: Notification of Service for Case: 2026-001018-2, Kathryn CopelandvsWMCi X, LLC d/b/a The Bowery at Southside for filing Notice, Envelope Number: 113544171

Notification of Service

Case Number: 2026-001018-2

Case Style: Kathryn CopelandvsWMCi X, LLC

d/b/a The Bowery at Southside

Envelope Number: 113544171



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Case Style	Kathryn CopelandvsWMCi X, LLC d/b/a The Bowery at Southside
Date/Time Submitted	4/12/2026 10:27 PM CST
Filing Type	Notice
Filing Description	Plaintiff's Verified Notice of Void Vexatious Litigant Orders
Filed By	John Douglas
Service Contacts	Other Service Contacts not associated with a party on the case: Glynis Zavarelli (gzavarelli@wandzlaw.com) Michelle Sortor (msortor@wandzlaw.com) Courtney Cotten (ccotten@wandzlaw.com) Rebecca Young (ryoung@wandzlaw.com) Aayush Dhurka (adhurka@wandzlaw.com) Kathryn Copeland (kcopelandlaw@gmail.com)

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